

The Survey

Paul Underwood Kellogg
Editor

Volume 30, Number 1
Apr 5, 1913

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*** START OF THE PROJECT GUTENBERG EBOOK THE SURVEY, VOLUME 30,
NUMBER 1, APRIL 5, 1913 ***

THE SURVEY

Volume XXX, Number 1, Apr 5, 1913

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THE COMMON WELFARE

RESPONSE TO FLOOD CALLS

For the first time in the history of our great disasters, the country's machinery for relief has been found ready to move with that precision and efficiency which only careful previous organization could make possible. In the flood and tornado stricken regions of the Mississippi valley the Red Cross has given splendid evidence of the effectiveness of its scheme of organization and of its methods as worked out on the basis of experience at San Francisco, and as tested by the Minnesota and Michigan forest fires, the Cherry mine disaster, and the Mississippi Floods of last year.

Utilizing the largest and ablest charity organization societies which serve as "institutional members," a force of executives and trained workers was instantly deployed. With foreknowledge of just what to do and how to do it, and without friction, these men and women have reinforced the spontaneous response to emergency of citizens and officials in the stricken communities.

Omaha's tornado had scarcely died down when Eugene T. Lies of the Chicago United Charities was on his way to the city. Ernest P. Bicknell, director of the National Red Cross, had reached Chicago, en route to Omaha, when news of the Ohio floods turned him back. The same news summoned Edward T. Devine from New York. It was Mr. Devine who organized the Red Cross relief work at San Francisco, following the earthquake and fire of 1908. Mr. Bicknell established headquarters at Columbus, itself badly in the grip of the waters. At Dayton Mr. Devine, C. M. Hubbard of the St. Louis Provident Association and T. J. Edmonds of the Cincinnati Associated Charities concentrated their services.

When Cincinnati and its vicinity needed help, Mr. Edmonds returned to his home city. The Omaha situation by this time could spare Mr. Lies for Dayton. To Piqua, Sidney and other Ohio and Indiana flood points went James F. Jackson of the Cleveland Associated Charities and other workers from various organizations. The news from the Ohio and other floods almost swamped that of an isolated disaster in Alabama where a tornado devastated the town of Lower Peachtree. To handle the relief at this point the Red Cross dispatched William M. McGrath of the Birmingham Associated Charities, who had seen service a year ago in the Mississippi floods.

To work under the direction of these executives, agents have been drafted from the staffs of charitable organizations scattered throughout the entire middle West, and even as far east as New York. Close co-operation was at once established between this force, hastily organized local committees and various branches of federal and state government service. In Ohio the resources, equipment and staffs of the army, the Public Health and Marine Hospital Service, the life-saving service, the militia, the naval militia, and state departments of public health, have all been applied promptly to the problem of emergency relief. Governor Cox of Ohio, as ex-officio chairman of the Ohio Red Cross State Commission, did much to assure this early co-operation.

Following the first work of rescue and relief, sanitation looms up as one of the gravest problems of the Indiana and Ohio valleys. Immediately upon the arrival of the secretary of war at Dayton a sanitary officer was appointed, who divided the city into sixteen districts, each in charge of a district sanitary officer. Each of these selected his own staff from among local physicians and volunteer physicians from other cities. Red Cross nurses in considerable numbers were early supplied. Instructions in brief form have been sent broadcast over the city giving definite

directions to the inhabitants for the safeguarding of health. The sewer and water systems are being reopened as rapidly as possible.

Early this week the expectation was that, although the dead in the city would not total 200, it would be necessary to feed many thousands of people for a week and several thousand for several weeks. The Dayton situation, though more severe, was typical of what was to be found in other stricken towns.

The extent of the Omaha disaster is already reported in statistics which are said to be complete and accurate. The summary includes: 115 lives lost; 322 seriously injured; at least 1,000 slightly injured; 822 houses destroyed; 2,100 houses partially wrecked; property loss estimated at \$7,500,000; 733 families being fed in relief stations (March 30); 59 dead; 150 injured and \$1,000,000 property loss in surrounding towns. Efforts are being made by the real estate exchange to prevent the raising of rents. The plans suggested for rebuilding include a county bond issue of \$1,000,000 and the securing of other money from the packing and railroad companies to be loaned without interest.

President Wilson's call to the nation for relief, and the quick action of governors and mayors in rallying their states and cities, started emergency supplies and funds for supplementing the tents, blankets and rations which the army and militia had rushed into the field. The National Cash Register Company, whose undamaged factories in Dayton were of great value in providing shelter and space for relief administration, secured through its officers in other cities supplies and money which were promptly forwarded. The company officials did much to systematize the local relief, and department heads assumed charge of different divisions of the work. Organization charts and diagrams were printed at the factory so that the people of the city could act intelligently.

Early this week the relief funds were reported to have reached \$408,000 in New York, \$300,000 in Chicago, \$105,000 in Boston, and varying sums in other cities. Most of the money was contributed through the Red Cross. Contributions received at its Washington headquarters totalled \$816,000, with New York first, Massachusetts second and Illinois third in size of contributions.

Some small gifts were as significant as the larger ones. A young man who appeared to be a poorly paid clerk came to the Red Cross office in New York at the noon hour last Friday and pulled from his pocket a five dollar and a one dollar bill. The person in charge asked him if he was not giving more than his share, and suggested that he keep the one dollar bill. "No," said he, "I've kept some small change for carfare and lunch, and tomorrow's pay day." One letter accompanying a small contribution read:

"Just one short year ago, when the ill-fated Titanic deprived me of mine all, the Red Cross Society lost not a moment in coming to my aid. Through you I now wish to give my 'widow's mite' to help the stricken ones in the West, and I only wish I could make it a thousand times as much."

Emergency supplies and funds have been prompt and abundant, but the extensive work ahead of lifting household and community life out of desolation justifies and requires a very large fund. For, as Mr. Devine, with the San Francisco catastrophe in the background of his experience, telegraphed after reaching Dayton: "The disaster is appalling even if the loss of life is less than it was feared."

Spontaneous contributions through a variety of channels are usually sufficient for immediate needs, and the Red Cross is following its customary policy of reserving as much of its funds as possible for permanent rehabilitation. When a disaster comes in any part of the country the nearest

"institutional members" of the Red Cross at once dispatch trained members of their staffs to the scene. Each organization has an "emergency box" containing, convenient for carrying, an equipment including detailed printed instructions, record cards, Red Cross flag, expense sheets, vouchers, etc. The use of this equipment, especially the uniform record cards, which have been carefully prepared on the basis of the San Francisco experience, means that help is not lost or wasted, but gets to the people who need it most. Even more important, it means that help is given not merely to keep victims of the disaster from starvation and exposure during the weeks immediately following, but to afford a reasonable lift on the road to the recovery of the standard of living maintained before the disaster.

A RELIEF SURVEY BY THE SAGE FOUNDATION

This emphasis on rehabilitation is the message of a report^[1] which, by a coincidence, was on the press for the Russell Sage Foundation when news of tornado and flood came from the middle West. It is the first comprehensive review of emergent relief work following great disasters. It is based on the San Francisco experience and put forth as a "book of ready reference for use on occasions of special emergency."

^[1] San Francisco Relief Survey. By Charles J. O'Connor, Francis H. McLean and others. Survey Associates, Inc., for the Russell Sage Foundation. To be published April 18, the seventh anniversary of the San Francisco earthquake. Price postpaid \$3.50. Orders for delivery on publication day may be sent to THE SURVEY.

The volume presents a study of the organization and methods of relief following the San Francisco earthquake and fire, made for the Foundation by a group of people who held responsible positions in connection with the relief work. It is to appear on April 18, the seventh anniversary of the disaster.

For the assistance of those in the middle West upon whom heavy responsibilities came so suddenly, the Sage Foundation sent out post haste advance copies of the first two sections of the report as a practical handbook to charity organizations in and near the stricken regions.

The Relief Survey is divided into six parts: Organization and Emergency Period; Rehabilitation; Business Rehabilitation; Housing Rehabilitation; After Care; The Aged and Infirm. Some of the prime points emphasized for the "Organization and Emergency Period" are the following:

1. The recognition of the American National Red Cross, with its permanent organization, its governmental status, and its direct accountability to Congress for all expenditures, as the proper national agency through which relief funds for great disasters should be collected and administered; thus securing unity of effort, certainty of policy, and a center about which all local relief agencies may rally.
2. The importance of postponing the appointment of sub-committees until a strong central committee has been able to determine general policies and methods of procedure. The hasty organization of sub-committees at San Francisco resulted in much unnecessary overlapping effort and some friction when committees got in each other's way. The relief forces were not united until a whole week after the disaster, and after unfortunate difficulty and bitterness.
3. The desirability of contributions, especially those in kind, being sent without restrictions, as only the local organization is able to measure relative needs at different periods of the work. At San Francisco much pitifully needless restrictions imposed by those who sent funds or supplies from distant states. The delays in securing authority for the wise use of these

contributions were well-nigh intolerable. The only safe course lies in placing implicit trust in an efficient and recognized director of relief such as the Red Cross is in a position to furnish.

4. The value of utilizing for emergency administration a body so highly organized and so efficient as the United States Army, to take charge of camps, and to bring to points of distribution the supplies required for those in need of food and clothing.

5. The wisdom of reducing the bread line and the camp population as quickly as possible after the disaster so that the relief resources may be conserved to meet the primary need of rehabilitation. The care used in emergency expenditures means much in husbanding resources so that permanent rehabilitation may be efficient and thorough.

6. The need of establishing a central bureau of information to serve from the beginning of the relief work as a clearing house, to prevent confusion and waste through duplication of effort.

7. The necessity of utilizing the centers of emergency distribution for the later rehabilitation work of district communities and corps of visitors.

8. The necessity of incorporation for any relief organization that has to deal with so large a disaster.

9. The possibility of a strict audit of all relief in cash sent to a relief organization. The impossibility of an equally strict accounting for relief in kind, because of the many leaks and the difficulties attendant upon hurried distribution. Care in this direction is assured if the Red Cross is fully utilized.

Nothing can take the place, the editors of the Relief Survey testify, of the spirit and devotion of the local committees. At San Francisco the citizens showed splendid self-reliance and faith in the future, which enabled them to rebound from fortune's sudden blow, and show what sustained and co-operative effort can achieve. But the most important factor, especially for permanent rehabilitation, in so great and complex a relief problem is a trained staff. This the American Red Cross, through the co-operation of charity organization societies throughout the country, is constantly prepared to bring together on short notice. Mr. Bicknell represented the Red Cross at San Francisco after Mr. Devine's departure, and was thus unusually well equipped to plan the methods which the Red Cross has devised for emergency use.

SOCIAL LEGISLATION AND THE EXTRA SESSION

An open letter was sent to President Wilson this week with over forty-five signatures, urging the importance of a group of social measures which were neither voted down nor passed at the last session of Congress. In the opinion of the signers, among whom are included some of the Democratic leaders who have been foremost in social reform, this overhanging social legislation should be definitely acted upon at the extra session. The movement to this end was encouraged by the positions taken by President Wilson in his inaugural address.

The letter is the outgrowth of a meeting of men and women interested in social legislation held last week in New York at the call of Edward T. Devine as associate editor of The Survey. The signatures to the document are those of individuals solely. The particular measures will be urged at the forthcoming Congress by such national organizations as the American Association for Labor Legislation, National Consumers League, National Committee for Mental Hygiene, National Child Labor Committee, the American Prison Labor Association and the Gloucester Fisherman's Institute. While each organization is committed only to the measures in its own field, all of them

have a common interest in seeing that the extra session takes up social legislation in addition to the tariff and currency. The letter follows:

THE PRESIDENT,
The White House,
Washington. D. C.

Dear Mr. President:—

On the eve of the convening of the Sixty-Third Congress in special session, the undersigned desire to bring to your attention certain bills of importance which have received the favorable consideration of the last Congress, but which, owing to various reasons, failed of affirmative action.

Nothing could set more vividly before the country the urgency of such measures than the words of your inaugural address, in which you pointed out the need for perfecting the means by which the government may be put at the service of humanity in safeguarding the health of the nation, the health of its men and its women and its children, as well as their rights in the struggle for existence. The country has been stirred by your declaration:

"This is no sentimental duty. The firm basis of government is justice, not pity. These are matters of justice. There can be no equality of opportunity, the first essential of justice in the body politic, if men and women and children be not shielded in their lives, their very vitality, from the consequences of great industrial and social processes which they cannot alter, control, or singly cope with. Society must see to it that it does not itself crush or weaken or damage its own constituent parts."

The undersigned are aware that the time and energy of Congress will be largely expended upon the revision of the revenue and currency statutes. Without in any way meaning to minimize the importance of these subjects, we wish to lay emphasis upon what we believe to be the necessity for the passage of certain other measures directly affecting the health and happiness of hundreds of thousands of citizens. The legislative proposals which we present to you are not new; several of them have met with little open opposition; some have been passed by one house of Congress; others by both; all have been prepared by experts and are based upon tried principles already embodied either in the federal laws, in the laws of the various states, or in the laws of other nations. An example is the bill which aims to compensate workingmen employed in interstate commerce for accidents to life and limb. Another is the eight-hour bill for women in the District of Columbia, which was lost through an accident in the closing hours of the last Congress.

The measures which had not passed when Congress adjourned and which are herewith advocated are as follows. It is the principles underlying these several bills rather than the specific provisions of any measure that we wish to be understood as urging upon the attention of the President and Congress:

Providing compensation for federal employees suffering injury or occupational diseases in the course of their employment.

Providing compensation for employees in interstate commerce suffering injury in the course of their employment.

Harmonizing conflicting court decisions in different states by giving the state itself the right of appeal to the Supreme Court of the United States.

Establishing the eight-hour day for women employed in certain occupations in the District of Columbia.

Co-ordinating the federal health activities and strengthening the public health service.

Providing in the immigration act for mental examination of immigrants by alienists; safeguarding the welfare of immigrants at sea by detailing American medical officers and matrons to immigrant-carrying ships.

Providing a hospital ship for American deep-sea fishermen.

Providing for the betterment of the conditions of American seamen.

Establishing a commission to investigate jails and the correction of first offenders.

Abolishing the contract convict labor system by restricting interstate commerce in prison-made goods.

Legislation giving effect to the principles underlying such proposals as these would constitute, we believe, an important step in the accomplishment of the forward-looking purposes which you have placed before the American people.

Caroline B. Alexander
Frederic Almy
Louise de Koven Bowen
Louis D. Brandeis
Howard S. Braucher
Allen T. Burns
Charles C. Burlingham
Richard C. Cabot
Richard S. Childs
John R. Commons
Charles R. Crane
Edward T. Devine
Abram J. Elkus
H. D. W. English
Livingston Farrand
Homer Folks
Ernst Freund
John M. Glenn
Josephine Goldmark
T. J. Keenan
Florence Kelley
Howard A. Kelly
Arthur P. Kellogg
Paul U. Kellogg
John A. Kingsbury
Constance D. Leupp
Samuel McCune Lindsay

Charles S. Macfarland
W. N. McNair
Charles E. Merriam
Adelbert Moot
Henry Morgenthau
Frances Perkins
Charles R. Richards
Margaret Drier Robins
W. L. Russell
Thomas W. Salmon
Henry R. Seager
Thomas A. Storey
Graham Taylor
Graham Romeyn Taylor
Lillian D. Wald
James R. West
W. F. Willoughby
Stephen S. Wise
Robert A. Woods

COMPULSORY MINIMUM WAGE LAW IN OREGON

Oregon's minimum wage law,^[2] which was recently signed by Governor West, is the first one in America to have a compulsory clause. Failure to pay the rate of wages fixed and in the method provided by the law is punishable by fine or imprisonment or both. In Massachusetts, the first state to establish minimum wage boards, the only penalty is the publication of the names of offending employers in four newspapers in the county where their industries are located.

[2] See Minimum Wage Legislation by Florence Kelley, on page 9 of this issue.

The Oregon law applies only to women and children. It prohibits their employment in any occupation in which the sanitary or other conditions are detrimental to health or morals, or for wages "which are inadequate to supply the necessary cost of living and maintain them in health." It likewise forbids the employment of minors "for unreasonable low wages." An Industrial Welfare Commission is created to determine minimum wages, maximum hours and standard conditions of labor.

The commission is authorized to call a conference of representatives of the employers, the employees and the general public to investigate and make recommendations as to the minimum wage to be paid in a given industry. If the commission approves these recommendations they become obligatory. The powers of the Oregon commission to determine hours and conditions of health and morals are more extensive than those delegated to an industrial commission by the legislature of any other state. The members of the commission are to be appointed by the governor.

The successful campaign for this law and the drafting of the bill itself was based upon an extensive investigation conducted by the Social Survey Committee of the Oregon Consumers' League. Wages, work conditions, and cost of living were studied in Portland and elsewhere throughout the state. The inquiry was directed by a trained investigator, Caroline J. Gleason of Minneapolis, formerly a student of the Chicago School of Civics and Philanthropy. The work was started in August 1912 and the information covered 7603 women wage earners in Portland and 1133

throughout the rest of the state. Wage statistics were tabulated for 4523, and are particularly valuable in the case of the department stores which placed their pay rolls at the disposal of the survey committee. Generous co-operation from committees in twenty-five counties of the state was secured.

In the drafting of the bill the experience of the Massachusetts Minimum Wage Board was studied. Legal advice was secured and the constitutionality of the measure is upheld in an opinion by the attorney general of the state.

Social workers from Washington and California have been in touch with the investigation and the preparation of the bill. They have arranged to have bills drawn up on the same lines introduced as soon as the legislatures of their own states convene. The passage of the same measure by the three coast states is regarded by the social workers in each as a desirable and important piece of uniform legislation for an area in which industrial conditions and problems are similar.

The Social Survey Committee in its report gives the principles and facts which form the basis of the demand for the legislation as follows:

1. Each industry should provide for the livelihood of the workers employed in it. An industry which does not do so is parasitic. The well-being of society demands that wage-earning women shall not be required to subsidize from their earnings the industry in which they are employed.
2. Owing to the lack of organisation among women workers and the secrecy with which their wage schedules are guarded, there are absolutely no standards of wages among them. Their wages are determined for the most part by the will of the employer without reference to efficiency or length of service on the part of the worker. This condition is radically unjust.
3. The wages paid to women workers in most occupations are miserably inadequate to meet the cost of living at the lowest standards consistent with the maintenance of the health and morals of the workers. Nearly three-fifths of the women employed in industries in Portland receive less than \$10 a week, which is the minimum weekly wage that ought to be offered to any self-supporting woman wage-earner in this city.
4. The present conditions of labor for women in many industries are shown by this report to be gravely detrimental to their health; and since most women wage earners are potential mothers, the future health of the race is menaced by these unsanitary conditions.

A NEW FEDERAL AGENCY FOR SETTLING STRIKES

An important power vested in Secretary Wilson of the new federal Department of Labor, which has hitherto practically escaped attention, gives to him the right assumed by President Roosevelt, when he initiated the machinery for settling the coal strike of 1902. The provision referred to in the law creating the department reads as follows:

"That the secretary of labor shall have power to act as mediator and to appoint commissioners of conciliation in labor disputes whenever in his judgment the interests of industrial peace may require it to be done."

Speaking of this section Secretary Wilson gave this interview to the *Washington Post*:

"The secretary of labor, by the terms of the act creating the new department, is empowered to act as mediator in disputes between labor and employers. The policy to which I shall adhere during my administration will be to do all I can to bring labor and capital together in mutual conferences, so that they may settle their own differences."

It has been pointed out that this power can be invoked at the will of the secretary. In this way he can bring public attention to bear upon any labor dispute which he believes warrants his official notice. Mr. Wilson has as yet given no indication as to how frequently he expects to use this power. Attention has also been called to the fact that this section may have an important effect upon the Erdman Act for settling transportation strikes.

FINGER PRINTS

TEN CENTS

KATHARINE ANTHONY



It was in a small restaurant in the downtown business district. The girl who came in and sat down opposite me at the "table for ladies" was clearly "office help." She could not have been more than sixteen, and in the boyish-looking brown velvet hat that she wore she appeared scarcely that. Her manner had little of the self-assertiveness so commonly seen in the young girl wage-earner.

"How much is the veg'tubble soup?" she asked the waiter in a confiding tone.

"Ten cents," he said.

The price appeared satisfactory and the waiter went away with his very brief order. While the young girl waited, she caught my eye.

"It's cold today," she remarked, with a winning smile and an air of taking me into her confidence as she had done with the waiter.

"A bit chilly, yes."

"He don't let me down to dinner till so late," she continued, "sometimes half-past one. You get hungry, and then you get over being hungry, and then you don't want nothing when you do go down. You know?"

Yes, I recognized the experience.

"The office where I used to work, we went out to dinner right at twelve every day."

"What keeps you so late now?"

"I guess he just forgets to let me down. He forgets to go out himself, I think."

The waiter brought the soup, a watery looking fluid in which floated a tomato and an onion in partial dissolution. He placed beside the plate a dingy blue check which bore in large print 10c.

"When I'm there a month, I'm going to ask him to let me down every day at a regular hour," she went on. "I'm only there a week now, so I wouldn't ask him yet."

She tasted the soup, but it was apparently not to her liking, or else, as she had said, her appetite had gone when the first feeling of hunger had passed. She glanced at the dirty blue check which committed her to her choice for better or worse, and then tried another spoonful of soup.

"I used to take a cup of coffee and a Charlotte 'roosh' every day, but my mother said I'd starve. She told me I'd got to have soup, it was more stren'thening."

"She was quite right, of course."

"But what's the use of ordering it if you can't eat it after all?"

She regarded the plate disconsolately. A little rallying induced her to make another effort. Then she gave it up entirely.

"I wonder what my mother would say if she could see me now!"

"I wonder!"

Taking two nickels from her small rusty bag, she rose, leaving the plate of cold soup almost untouched. She said good-by with her peculiarly friendly little smile, deposited the blue check and the two nickels at the cash counter, and went back to her afternoon's work.

WILLIAM, A MODERN DRAMA^[3]

^[3] Drawn from the records of the Juvenile Protective Association, Chicago.

The curtain is about to fall upon a human drama as full of complicating agencies and dramatic ironies as the most exacting either of Greeks or of moderns could require.

The *dramatis personae* are: a colored youth of twenty-two years; his aged mother (the father disappeared while the youth was still a child in Kansas); a friend who failed him and then too late repented; a partner; a dishonest clerk; a lawyer of similar type; and a judge according to the letter of the law. The acts are only three and brief.

Act I shows William at work for a large firm in Missouri at \$9 a week. He manages to live on \$3, sending \$6 to his mother. He could not write; she could not read. But the weekly money order became the tryst of mother and son, and by it she knew that all was well with him. Among his fellow workmen was one, also a William, who seemed friendly and like William I, anxious to live economically. The two Williams shared a room, and all went well for about three months.

One pay day, William II borrowed from William I the \$6 that should go to the mother, but only for a day or so, to be returned surely before the end of the week. But the man disappeared, and with him vanished the money. Then William I went to the little clothes press, and not having a suit of his own, took one of William II's, and pawned it for \$6, and sent the money to his mother according to his word. That night, repentant but penniless, William II returned. He expressed himself as well pleased with what had been done with his suit, satisfied to have the money raised by any means possible. So the two, reconciled, slept. But William II rising early in the morning, went for an officer, and charging his room-mate with theft, had him arrested.

"He slep' with me all night there, and in the mawnin he don' have me arrested!"—thus William I mourned his false friend.

So Act I closes with our hero in the penitentiary, locked in for two years. But William II's repentance bore a late fruit. During the two years, he sent out of his own money each week the \$6 to the mother of his friend, that she might never know the truth.

Act II shows William working in different places, and for short times, as is the fate of "jail-birds." At last in company with George he opens a restaurant, and prospers, and is popular. Then his evil fate overtakes him. Invited to be door-keeper at a dance one night, he left George in charge of the restaurant. George apparently went out on business of his own, and presently the clerk followed his example, donning for the time a coat of William's. But the clerk needed money; there was none in the pockets of the coat; and so, at a convenient corner, he waylaid a Chinese, relieved him of his funds, and left William's coat by way of compensation. Easily identified by the coat and papers in

its pockets, William was as easily arrested—and as easily sentenced. The trial was a farce. A lawyer was appointed by the court. This lawyer took his client's indictment papers, ignored his client, called no witnesses, heard the sentence, and drew his fee.

William appealed to the Pardon Board. But at the time of this appeal, neither George nor the other door-keeper at that dance could be found to prove an alibi for William. The board asked: "have you ever been in prison before?" Alas for William! He could not say no; the board would not listen to his version and investigate the facts. His own truthfulness condemned him, and he was sent up on a five years' sentence.

The setting of Act III is the penitentiary. Falsely accused, without opportunity to prove his innocence, neglected by the lawyer paid to defend him, William, being only a Negro, toiled faithfully in a stone quarry, accumulating a reputation undesirable in the eyes of the world and the law. One day his foot was injured by the crusher. Then after months of stone dust, his lungs became infected. But at last word of his case reached the Juvenile Protective Association, and presently successful proof of his innocence of all connection with the attack on the Chinese was secured, and William was paroled from prison.

How far he may recover from the injuries received during this imprisonment remains to be seen. How much of opportunity to work and support himself and the aged mother society will offer an injured Negro with two prison records is a grave question. But the matter may be settled by the quiet falling of the curtain upon the sad little drama of the life of William.—S.

EDITORIAL GRIST

JOHN PIERPONT MORGAN 1837-1913

Mr. Morgan was for seventeen years treasurer of the Charity Organization Society of the City of New York which founded THE SURVEY and under which it was published until the fall of 1912. When, in 1907, the parent society launched Charities Publication Committee in order "to give national scope and breadth" to the magazine, Mr. Morgan was one of fifteen guarantors who gave \$1,000 each the initial year to promote its educational work. Last summer he gave \$250, the sum asked from him, toward the clearance of an overhanging deficit, in advance of the institution of the Survey Associates as an independent and co-operative under-taking.

The public's chief concern in Mr. Morgan's great activities has been the play of his powerful individuality in the rapid reconstruction of the "mass of wrecked corporations which blocked the path of American finance" following the panic of 1893, and in "heading the forces of conservatism in the great business emergency" of 1907; his part as the "immense constructive genius" throughout the period of expansion in America's "large creative activities."

The "economic necessity or value of the enormous industrial combinations" shaped at his hands will, in the words of the New York *Evening Post*, "be the crux of later historical controversy over the great career now ended"; and the same is true of the ultimate effects on the working life of the people of his instrumentality in extending the country's railroads, in improving its banking, and in projecting its facilities for the manufacture of large staples.

Said Major Henry L. Higginson, New England's foremost philanthropist and financier, in commenting on Mr. Morgan's death: "To make a great fortune is little; to be a great citizen is much." THE SURVEY will, in an early issue, publish an appreciation of other phases of Mr. Morgan's trenchant personality by an associate in the fields of art and philanthropy.

Here, one circumstance which concerns this magazine closely may be set down. The Pittsburgh Survey was made at a period of restlessness and irritation in many high quarters, following a succession of investigations and exposures. The period was also one of sensitiveness among every day people lest the organs of publicity might be controlled by invisible influences. *Charities and the Commons* (as THE SURVEY was then called) bore Mr. Morgan's name as treasurer on its contents page while its staff was delving into the Pittsburgh district. The Pittsburgh Survey was conceived not for the purpose of internal counsel and report, but for the purpose of spreading before the public the facts as to life and labor in the region, where the two greatest individual fortunes in history had been made by Mr. Morgan's contemporaries, where he had in turn become the dominant factor, and where social tendencies observable everywhere had "actually, because of the high industrial development and the great industrial activity, had the opportunity to give tangible proof of their real character and their inevitable goal."

It must remain for Mr. Morgan's business associates to say how much affirmative concern he had given or came to give to the working conditions in those industries in which he controlled vast holdings, or to such far-reaching reforms as the safety campaign. But the staff of the Pittsburgh Survey can bear witness that no word of admonition ever reached them, no trace of pressure to minimize or gloss over or reserve for private consumption the human outcroppings of a thousand million dollar corporation. The situation did not change after our first strictures as to the seven-day week, the twelve-hour day, work accidents and the like had been spread broadcast. If they reached

Mr. Morgan's ears, he was willing to let this left hand of philanthropic inquiry take the exact social measure of what had been done or left undone in the fiscal and industrial enterprises in which he was the master entrepreneur.

MR. WEST'S ARTICLE^[4] PROTESTED

^[4] See Civil War in the West Virginia Coal Mines on page 37 of this issue.

NIGHT LETTER

CHARLESTON, W. VA.,
March 30, 1912.

"Owing to delayed trains, did not reach home nor receive your telegram of Friday until last night. West manuscript received and read this morning. Am directed to renew protest against its publication as contrary to facts in most important particulars and most unfair in attitude and spirit. An article published in your journal on a matter so important should be prepared by one of your own staff from facts gathered by your own investigator. Am authorized to place in your hands immediately five hundred dollars, being amount estimated by you as necessary to cover expense of special examination and article, and urge you in justice and fairness to accept and use it for the purpose. It is impossible to prepare an answer to the West article and have it in your hands tomorrow, nor is one-fifth the space given West article sufficient for an adequate reply thereto. If you decline to make your own investigation and report, it is submitted that justice requires that time be given so that West article and reply may appear in same issue and space equal to article be given for reply. If you refuse this I respectfully ask the publication of this protest with Mr. West's paper."

[Signed] NEIL ROBINSON.

[Secretary West Virginia Mining Association.]

In line with the general practice of THE SURVEY when an article makes major charges against an institution or industry—a copy of Mr. West's manuscript was sent on March 20 to the secretary of the West Virginia Mining Association, with a request that he indicate any points which "seem to you in error."

On March 26 THE SURVEY received a letter from Mr. Robinson, who called in person the day following to protest against the publication of the article as unfair, and not of the calibre expected of THE SURVEY by the public. He also offered us every facility if we would make an independent staff investigation. We stated that such a staff inquiry in the West Virginia field was beyond our means, that we had exercised due care in selecting Mr. West as a non-combatant observer, and that the manuscript had stood the test of criticism in various quarters. Further, we stated that if Mr. Robinson could there and then dislodge the major statements of fact in the article, we would surely not publish it; otherwise, we would hold two pages of the same issue of THE SURVEY open until Monday of this week for a statement in rebuttal.

In the interval a galley proof of the article was sent Mr. Robinson containing revisions to cover minor points of criticism made by him and other critics. Later issues of THE SURVEY are open to the West Virginia operators for a full reply; and the findings of a federal inquiry which would resourcefully and dispassionately cover the ground would, of course, be handled at length.

Y. M. C. A. GROWTH

The Young Men's Christian Association began in 1851, sixty-two years ago. The property value in plant and equipment, increased in the first ten years of the twentieth century more than in all the previous fifty years; the membership doubled, a tremendous growth.

Y. M. C. A.	1900	1910
Associations	1,439	2,017
Buildings	359	700
Property value	\$20,000,000	\$70,000,000
Membership	252,000	500,000
Annual current outlay	\$2,900,000	\$7,163,000

Will the next decade show a like growth for organized charity with proper effort?

THE TOWN CONSTABLE

J. J. KELSO

The town constable is one of the most important links in the chain of social service, and yet he is seldom taken into consideration by the active workers for social betterment.

A town constable was recently held up to public censure at a church meeting for failure to wipe out certain well-known evils. When asked about it the next day his reply was: "The law is being enforced in this town just as far as the people will stand for." His idea, you see, was that observance of law was a matter of education, of moral backing, and without this strong, sustaining support, one man, even with a badge and a club, could not go beyond a certain point.

The idea got into another constable's head once that his duty was to carry out the law, no matter what people thought about it, and to his great surprise it was not long before his resignation was insisted upon. He did splendid service and really frightened law-breakers, so much so that they got busy in bringing about his downfall. Where were the good people? Entirely missing. Here and there a man under his breath would give the official a word of faint praise, but in the council church members allowed themselves to be made the tools for his destruction. "Well meaning, but lacking in judgment" was the decision; "rash, hasty, ill-advised," and so he had to go in disgrace, while the law-breakers smiled quietly and continued on in the old way. Public meetings in that town still continue to denounce the well-known evils, indifferent to the fate of the officer who thought he had all the forces of good at his back.

Still another constable, whom I know well, told me privately that he started out in the same way, but got a hint that he could not hold his situation and, having a young family to support, he concluded it would be the part of wisdom to let well enough alone, especially as the men who counselled him were church leaders, who ought to know the sentiment of the town on moral questions.

Some towns have a high moral tone largely because of the good influence of the head of the police department. Others are on a low plane of moral observance because the constable is indifferent, if not indeed hostile, to advance measures. Lack of encouragement and appreciation is often the secret of this indifference.

Visiting a town on one occasion to take part in a meeting on social reform, I asked the constable who happened to be at the station if he knew Rev. S. Thomas Strother. "No."

"Well, do you know Rev. Milton Smoot?"

Receiving another negative, I enquired in surprise, "Why surely you are acquainted with the preachers of your town?"

"No," he said, in a surly tone, "they have no use for the likes of me." Here was a man, specially appointed guardian of the town and invested with the high dignity of safeguarding the lives, morals and property of the community, whose mental attitude toward the better element was evidently one of hostility. The explanation given me later was that he was a recent appointee, only there a month, and there was not sufficient time to get acquainted. "Well," I replied, "if I had been you people I would have gotten up a banquet and given him such a welcome as would hearten him in his great work for years to come." It is all in the way you look at these things.

At a large church gathering on social welfare I took occasion to exalt the office of constable and to praise the man who held that office. He was at the back of the hall and I could see was greatly surprised at this recognition. He came to me afterwards and earnestly expressed his thanks. "No one has given me that much encouragement before," he said, "and it will help me a great deal, especially as I want the young fellows of the town to know I am their friend and not their enemy."

Social and church workers, let the town constable know that he is appreciated, let him feel that good work is recognized, that if he is attacked because of fearless discharge of his duty, he will have behind him an unflinching body of men who will make his trouble theirs and fight for a righteous cause as well as talk at church meetings.

MINIMUM WAGE LEGISLATION

FLORENCE KELLEY

Secretary National Consumers' League

Governor West of Oregon has signed a bill creating a Minimum Wage Commission. Oregon thus follows Massachusetts in this new field of industrial legislation. Minimum wage bills have been introduced in the legislatures of California, Kansas, Ohio, Pennsylvania and Wisconsin. The New York Factory Investigating Commission will doubtless be continued and empowered to investigate wages.

The Oregon law and all the pending bills have one characteristic in common: they are alarmingly undemocratic. They fail to afford to American employees in underpaid industries those democratic safeguards which characterize English and Australian legislation. They apply to women, oblivious of the fact that wives and daughters work because their man breadwinner does not earn enough to support the family. These laws and bills ignore the youth and shifting nature of the working force in the underpaid industries which is so largely made up of young girls. They need the moral support of their men fellow-workers in negotiating about wages.

In America the governor appoints the commission, and the commission selects the wage board. The board determines the lowest wage and the women and girls take what they get. The recipients of the wages are not allowed to elect representatives to the boards. They are, in fact, not represented at all. The Kansas bill was killed by the legislature. It substituted "an adjuster" for commission and boards.

If these other ill-considered bills become laws, it will be the work of years to remodel them on more democratic lines, and on wise and just principles in the light of the experience of Australia and England.

"THE HAND OF THE POTTER TREMBLES"

SOLON DE LEON

To lead poisoning among lead smelters, white lead workers and painters, we have grown accustomed. Now comes the revelation of wide-spread plumbism, or "potters' palsy," among workers in the potteries.

Trenton, New Jersey, the third largest pottery center in the country, has recently been the scene of a brief study conducted by the American Association for Labor Legislation. Brief as was the study it revealed many cases of this disease.

One case was that of a fifteen-year-old orphan, as dipper's helper in a pottery. He handles cups and saucers after they have received their coat of glaze and before they are taken to the kiln. He gets his hands covered with glaze. There are no washing facilities at the plant where he works. When visited at home he had spots of white lead over the front of his shirt. After nine months as dipper's helper he began to complain of general ill health, with pains in the stomach. He worked interruptedly for another month, and finally came down with an attack of acute and excruciatingly painful poisoning which required a week's hospital treatment.

A young girl, now married and a mother, worked in a tile plant for six years, the last three of which she was a dipper. Within three months after starting the latter work she suffered a typical violent lead colic attack, accompanied by nausea and digestive derangements. The attack lasted a week, and was followed by three more at intervals of several months.

A former glost kiln-man of forty-five had worked in the Trenton potteries continuously for upwards of twenty years. Five years ago he was stricken with complete double wrist-drop and for two years was totally incapacitated.

Another practically useless pair of hands belongs to a workman forty-nine years old. Lead poisoning crippled him and deprived him of his trade at the age of thirty-three. He used to be a "ground layer." That is, he rubbed lead colors with a short brush into the surfaces to be decorated. In the course of fifteen years he had eight or ten severe attacks. In the last one, sixteen years ago, both arms were paralyzed. For two years he had to be clothed and fed. Now his arms have recovered their flexibility, but his hands still hang shrivelled and powerless to open or straighten themselves. For a livelihood he has been forced to take up an unskilled job requiring no manual work, but seven days' labor a week.

A color mixer in a tile works began after ten years to suffer from cramps in the stomach, nausea and biliousness. A number of physicians told him it was lead colic. He grew steadily worse, and four years later he died. The death certificate gives pulmonary tuberculosis as the cause, but the physicians on the case agreed in stating that lead formed at least a considerable complication.

So run the records of a few of the cases.

There are about 21,000 potters, the makers and enamelers of iron sanitary ware in the United States. Of these, 2,500 or over 10 per cent are declared by Dr. Alice Hamilton in her report to the United States government to be exposed in the regular course of their work to the risk of lead poisoning. Within two years 510 cases of poisoning were found.

It is now generally accepted that the one word "cleanliness" sums up the requirements for the abolition of such occurrences. Yet the workshops in the pottery and allied industries are at present almost without exception run with utter disregard of this fundamental consideration. They are as a rule dusty, ill-ventilated and poorly lighted. Washing facilities are almost unknown.

In New Jersey and in seven other states the legislatures have now pending before them the aptly christened "cleanliness bill," drafted by the Association for Labor Legislation after careful study to counteract just these conditions. The proposed measure establishes strict sanitary provisions in potteries and all works making or handling lead salts. It takes a leaf from successful English and German legislation by establishing "duties of employees" as well as "duties of employers," and by fixing a fine for failure to comply. The bill has passed the lower house in Missouri, and has been reported favorably by the lower house committee to which it was referred in Ohio and in New Jersey. A similar law has been in force in Illinois for two years with excellent results. Many progressive manufacturers admit the wisdom of these regulations and will not oppose them. Others are actively in favor.

WHY IS THE PAUPER



SUGGESTIVE FACTS AS TO CAUSES AND PREVENTION OF DESTITUTION REVEALED BY A STUDY OF A MID-WESTERN ALMSHOUSE^[5]

^[5] In taking the rather exhaustive social histories of the 200 inmates of the Sangamon County Poor Farm, I was assisted by Mary Humphrey and Mary Johnson, without whose intelligent and enthusiastic co-operation this preliminary study could not have been made.

GEORGE THOMAS PALMER, M. D.

SUPERINTENDENT HEALTH DEPARTMENT, SPRINGFIELD, ILL.

Drawings by Alfred S. Harkness

Poorhouse it was, this mid-western abode of unfortunates, regardless of the resolution of the Conference of Charities and Correction recommending that it and its host of fellows be known as "county homes."



This particular poorhouse was comfortably perched upon a hill, surrounded by elms and oaks and walnuts, overlooking a land of plenty—a "prosperous-looking" poorhouse it was with well-bred Holstein cows wading knee-deep in clover on land worth \$250 an acre. The verdant pastures, the fields of grain, the white fences, the silo and the barns, the splendid old brick house, might have belonged to a delightful country estate so apparently did they bespeak good farm management. Good order and spick-and-spanness also characterized broad veranda and hall, the living rooms of the superintendent, and almost might the same terms have been applied to the dwelling place of the inmates.

This, seemingly, was no place to come for the ugly story of destitution—for the revolting facts which force us, almost against our wills, to paint our picture in glaring yellow. But the destitution was there. You could see it in the expression, the gait and the posture of the inmates; you could

smell it in the unmistakable smell of poverty and you could feel it in the indefinable something which grips you and oppresses you in an institution of this kind.

It was a poorhouse and nothing but a poorhouse—a good poorhouse, if there is such a thing, but a poorhouse none the less. Like thousands of similar institutions, it stood ready to receive the individual when he strikes the very bottom of the toboggan slide of life, to house him and to feed him humanely enough, but with the saving of dimes and nickels regarded as the cardinal virtue of efficient management. It was an "asylum of poverty"—no more what such an institution might be than the lunatic asylum of twenty years ago is like the hospital for the insane of the present day. Like thousands of others, it was one of those places where we receive the unfortunate; where we label him a pauper; where we tolerate his presence until death reduces the county expense or until he goes out into the world again not a whit better off, physically, mentally or morally, on account of his association with us.

We had come to the place for the purpose of ascertaining to what extent tuberculosis prevailed among the two hundred inmates and to ascertain the degree of protection afforded these unfortunates against infection from the disease. As our work progressed this question came to me more and more insistently: "Why are these men and women dependents? What, if anything, could be learned if they were permitted to tell their own stories of misfortune?"



Social history blanks were prepared, and two intelligent young women were set at the task of supplementing physical examinations with a series of questions relative to the past lives of the inmates. Due allowance was made for natural exaggeration when a person told of the glories of his past, and like allowance was made for the faulty memory which had lost its record of personal faults, vices and dissipations. As far as possible the reliability of the story was determined by checking up with certain definite and obtainable facts.

At the outset of the work, a wave of fear spread over the place born of the belief that we were cataloging the inmates to send them to an "asylum"; but when this was quieted, the history taking was uneventful.

Eliminating those who were mentally incapable of being interviewed, we were able to prepare 137 quite complete records. Of those interviewed, 32 were women and 105 men. Practically all the women, incidentally, were there on account of insanity, drug addiction or actual illness. There were 131 white inmates, 5 Negroes and one who claimed to be an Indian. Sixty-nine were single, that is 60 per cent of the males and but 27 per cent of the females. Nineteen had living husbands or wives and 47 were widowed. Of those who had married, 42 had married once only; 13 stated that they had married twice and 4 that they had married three times or more.



To the penny-wise county official it is of practical interest to note that 34 of the inmates, or about 25 per cent, had living children and that even casual inquiry showed many instances in which the children were financially able to take care of these unfortunates, as the laws of Illinois provide that they shall do.

Thirty of the inmates were born in Illinois; 36 in the United States outside of Illinois; while Ireland and Germany came next with 21 representatives each. There was no Jew in the almshouse.

Three of the inmates admitted that their parents had been dependent upon public charity; 24 admitted alcoholism or drug addiction on the part of their parents; 4 were the children of the insane and one was the daughter of a criminal. The fathers of 106 came from laboring and agricultural classes, while the fathers of 6 were professional men.



Nineteen of the inmates had had no education whatever; 12 claimed to be able to read and write but had never gone to school; 4 had attended school less than one year; 15 had attended less than five years; 71 claimed a complete "common school" education and 7 had gone to high school or college. Four had been compelled to earn a living under ten years of age; 12 from ten to twelve years; 41 from twelve to fifteen years and 31 had begun work between the ages of fifteen and twenty-one years.

With this showing, the question naturally arises: Is there any connection between lack of education, child labor and the poorhouse?

One of the male inmates had been a pharmacist, one a civil engineer; 28 had learned trades and 53 were laborers. Of the females, 17 were house servants and one a teacher.

To ascertain something of the past financial condition, we inquired as to the highest wage each had made, the amount he had inherited and the greatest amount he had ever accumulated. Six had never made more than \$10 to \$20 per month; 21 had made from \$20 to \$50 per month and 28 claimed to have made over \$100 per month. Fourteen had inherited property worth less than \$500; 11 had inherited from \$500 to \$1,000; 5 from \$1,000 to \$5,000, and one had inherited from \$5,000 to \$10,000. Thirty-five of the inmates had never accumulated as much as \$500 at any one time; 22 had possessed from \$500 to \$1,000; 20 had owned from \$1,000 to \$5,000; 7 from \$5,000 to \$10,000, and four had had over \$10,000.



As to their habits, vices and dependence, 88 were users of alcohol and 35 of these had been heavy drinkers. Four females and one male were addicted to drugs. Thirty-nine had been arrested once, and four more than once. The causes of arrest were drunkenness and disorderly conduct 22; vagrancy 10; theft 1; assault 4 and participation in a strike 1. Two of the inmates had been in other almshouses; 7 had occupied beds in charity hospitals; 2 had grown up from orphan asylums and 4 had been helped by lodges and unions. Many had received county orders before coming to the almshouse.

What light such data as the foregoing, if collected in large numbers of similar institutions, would throw upon the underlying causes of destitution, is, of course, speculative. It seems to me, however, that they might give us a more intelligent idea of the connection between pauperism and the marriage of the unfit; lack of education; child labor; lack of trade or definite vocation; poor

mentality; lack of religious influence; divorce or failure to marry; alcohol and drugs; vice and preventable disease.

If these remote influences lie beyond the imaginative possibilities of the average almshouse superintendent and county official, there were certain other facts brought out in this study which should appeal to the most practical and hard-headed. These facts seem to point the way to the rehabilitation of the unfortunate; the way of placing him on his feet again. They also point directly to the reduction in the almshouse population and the consequent decrease in public expense.

Getting at the direct causes of dependence, it was found that old age was the chief factor, 47 of the inmates being over 70 years of age. This number of dependents, incidentally, could be materially reduced by tracing out near relatives legally responsible for their care.



Drugs and alcohol were responsible for 25 dependencies—a less encouraging group until we have intelligent public treatment for these cases. Twenty-five of the inmates were crippled while 18 were there on account of general illness. Doubtless many of these cases would be amenable to treatment if properly studied and diagnosed.

Six were victims of advanced tuberculosis, and it may be assumed that the nature of the illness was unrecognized as the patients were housed in dormitories with the uninfected. There were unquestionably other tuberculosis cases undiagnosed who were not only losing their chance of cure; but were exposing and infecting others. I am impressed, incidentally, that almshouses, with their armies of transients going to the crowded, unventilated quarters of the poor, are very considerable spreaders of tuberculosis.

The insane, feeble-minded and epileptic aggregated perhaps 50—an almshouse population which should be and must be decreased by more adequate state provision for these afflicted.

Syphilis was responsible for 3 dependencies, and probably many more would respond to the Wassermann test and could be restored to health by specific treatment.

The 4 blind and aged inmates might be made to see by simple cataract operations.

Many of the inmates expressed the wish that they might be restored to health that they could go out into the world again upon their own resources. But 58 replied, when asked what they wanted to do in the future, that they wanted to stay where they were, under the friendly roof of the poorhouse.

This does not imply hopeless pauperism, however. Sick, neglected, weak and despondent—of course, they want to stay in some place, even in the poorhouse, where they are not eternally ordered to move on by the police; viewed with suspicion or fear by self-respecting citizens or in constant danger of arrest for vagrancy. Such forlorn men not infrequently commit petty crimes to guarantee their being housed in jail during a cold winter.

I am optimistic enough to believe that if the physical conditions of each inmate were studied; if his ills were cured and he was made stronger in body, he would be given courage, more ambition and more purpose in life. To this extent pauperism is directly curable.

True, there are among the destitute those who are hopelessly marked—branded by heredity; cursed by environment; wrecked by disease; deficient in body and in mind, with little or nothing to work upon. By the same token there are those in other branches of medicine who are hopelessly sick—those who are beyond the reach of the surgeon's knife or the physician's prescription. There are those among the insane who give no ray of hope to the most enthusiastic alienist.

But when we progress to the point of classifying our paupers; of studying intelligently the various causes of destitution; of endeavoring to make our almshouses places of cure rather than mere asylums for the victims of poverty, our percentage of "recoveries" will be surprisingly high.



The difference in methods between the modern insane hospital and the almshouse is striking. A man is admitted to an institution for the insane in a thoroughly irrational and excitable condition. His case is studied and it is found that he has cerebral syphilis. Proper treatment is instituted and, in all probability, the patient is returned to his family cured and a useful member of society.

In another case, syphilis has rendered a man physically inefficient, dissipated and despondent. He drifts to the poorhouse where he is catalogued simply as a "pauper." The chances are that the cause of his pauperism is not detected. If he announces it himself, he may receive the hurried, occasional visit of a contract doctor. Even the drugs that are given him may be crude and impure, bought by contract from the lowest bidder. Little or no provision is made for his intelligent and systematic treatment. He may be drugged with mercury until he is salivated; he may be neglected until his open sores cause him to be housed in the basement away from the other inmates. He is merely a syphilitic pauper and the rough fare of the poorhouse is looked upon as better than he deserves.

As a matter of fact, he is a sick man; sick of a curable disease and his cure may restore him to useful citizenship and remove him from the county expense.

Or again, there comes to the almshouse a man who is tired—a man who will not work. Perhaps he is losing a little weight and he is known to have been drinking more whiskey than he did when he worked harder. You are tempted to compel him to work; to drive him to earn his meager board and bed. The superintendent has no time to note that he has a little fever at night or to see that he clears his throat from time to time. Without physical examination, we have no way of knowing that we are dealing with an incipient consumptive. The average superintendent knows nothing of the deadly weariness of this disease; the weariness that invades every muscle of the body; which makes work impossible; which prompts men of higher moral fiber to drink whiskey or seek other stimulation.

This "lazy devil" is begrudged our poorhouse food, when, as a matter of fact, he ought to have, and at public expense, better food than we have ever thought of giving him. With fresh air, milk, eggs, nourishing food, intelligent treatment and perfect rest, this man can get well and resume a place in the world. With ordinary almshouse care and almshouse fare, we are signing his death warrant while we are guaranteeing his prolonged dependence upon public charity.

We receive old men who have worked hard and who have made an honest living before their eyesight failed and they became almost blind. We label these men as paupers and do not stop to question if a simple operation for cataract would not restore them to useful occupation.

The spirit of the average almshouse is illustrated in this—one Illinois county has a contract with a dentist to pull the teeth of poor farm inmates. There is no provision for saving teeth. If the inmate is writhing with toothache, he must take his choice; lose a good tooth on contract, or grin and bear the pain. The supervisors can see no reason why a pauper should want to save his teeth or why he should be permitted to do so. And yet a cheap filling would cost little more than the primitive and mutilating operation of extraction.

These are mere instances of the obvious curative possibilities in the almshouse—instances where the county's duties are so apparent, in which the right and humane way is so clearly the cheap and economical way that the matter should require no discussion. It is the line of direct cure which the county, as a matter of sound administration, should make it possible to carry out. It means first the careful physical examination of every inmate of every almshouse, not by the medical man who bids lowest to get the contract, but by the most capable diagnostician available.



But this is only the beginning. The big possibility is what the almshouses of the nation can do to ascertain the more remote causes of poverty and destitution, for, as in the case of the insane, when we know the causes of destitution, we can carry out our most effective work before the pauper becomes a pauper—before he comes slinking, wretched and despondent, to the door of the county farm.

Tuberculosis will never be eradicated by merely treating the sick; yellow fever could not have been stamped out by simply caring for the afflicted; pauperism will never be materially affected by what we do when the pauper has reached his last ditch. We must fight tuberculosis by striking at its causes; we have already eliminated yellow fever by the same sane process. We would have gone further in our battle against pauperism, perhaps, were it not that pauperism is the only disease that has never invaded the home of the rich. No multi-millionaire has ever endowed a research laboratory for the study of destitution in memory of a petted child struck dead by its poisonous fangs.

But every almshouse has its clinic in poverty and I am convinced that if every inmate in every poorhouse throughout the nation could be made to tell the story of how he came to be there; if every one could be examined for physical and mental causes, and if all these data could be gathered together in systematic form, a great stride would have been made in formulating an intelligent campaign against dependence.

COMPENSATION FOR OCCUPATIONAL DISEASES

JOHN B. ANDREWS

SECRETARY AMERICAN ASSOCIATION FOR LABOR LEGISLATION

The introduction in Congress of a bill which extends the workmen's compensation principle to embrace occupational diseases places before the American people an entirely new range of problems in the field of social insurance.

The federal government since 1908, and fifteen states during the past two years, have recognized the wisdom and justice of the compensation principle in dealing with the victims of industrial accidents. Now comes the demand that the American people, through Congress, adopt exactly the same principle in dealing with federal employees who are incapacitated for work by occupational diseases.

What is the present situation?

"The government gives no compensation for lead poisoning because, technically, it is not an accident, which is true, for under the circumstances it is a dead certainty."

—This quotation from the report of an investigator for the New York State Factory Investigating Commission is neither a playful nor an exaggerated statement. On the contrary, we now have complete confirmation of its truth in the official report and in the sober legal phrase of the solicitor for the Department of Commerce and Labor.^[6]

^[6] Opinions of the Solicitor for the Department of Commerce and Labor dealing with Workmen's Compensation. 1912.

It all came about in this way. A man named Schroeder went to work in the federal navy yard at Brooklyn. One of our big war ships, the Ohio, came to the dock and Schroeder was sent down into the water-tight compartments called "coffer-dams" to burn off the old coat of paint in preparation for a new. As a result of breathing the fumes of the lead paint, Schroeder was incapacitated for work by acute lead poisoning. He lost thirty-seven days on this account, and he applied to the government for the payment of compensation equal to the wages he had lost.

This statement was made by the attorney for the United States government:

"The question in this case is whether acute lead poisoning contracted in the course of employment is an injury within the meaning of the compensation act. If the inhalation of noxious gases is a necessary incident to the workman's employment, there can be nothing accidental in the injury resulting therefrom. This latter consideration disposes of the present case....

"It cannot be said that these fumes were inhaled by accident. The fumes were necessarily produced by the work he was engaged upon. The inhalation of such fumes was to have been expected and probably could not have been avoided. Lead poisoning, under the circumstances, was the natural, if not the inevitable, result."

Schroeder got not one penny.

Aside from the fact that lead poisoning in this case was really preventable; aside from the fact that several enlightened nations have absolutely prohibited the use of poisonous lead paints for the interior of their war ships, and aside from the fact that there was no one to warn Schroeder of the dangerous nature of his occupation, there is one big final reason why this decision of Uncle Sam's Attorney was even more unfortunate than it was necessary. The financial cost of this unnecessary case of acute lead poisoning, in addition to the personal suffering, fell upon poor Schroeder. Most men will agree that such financial losses should fall upon the employer. In this case the employer was the nation, which means all of us, you and me.

We owe Schroeder something more than an apology. While the federal government is publishing excellent reports on lead poisoning in the factories of private employers and is translating and distributing in fat volumes the workmen's compensation laws of European countries, can the United States afford to do less than make provision for reasonably safe work places in the government service? And can this country afford to ignore the good example of these European laws which provide compensation for such victims of occupational diseases?

A few months after the unfortunate Schroeder case a man named Hill was employed at placing floor plates in the engine room of the war ship St. Louis in the Puget Sound Navy Yard. Meantime, red and white lead paint was being applied in the bilges of the vessel.

"As a result of this exposure to lead fumes, a sufficient amount of lead was taken into claimant's system to produce 'toxic amblyopia, both eyes,'"

which means

"disease of vision from imperfect sensation of the retina, without organic lesion of the eye."

This disease incapacitated Hill on the thirteenth day after his first exposure to the poison. The exposure lasted only seven days. Said the solicitor:

"It is accordingly possible to refer the claimant's injury to an event capable of being fixed in point of time. In the second place, the injury to the claimant's eyes was neither reasonably to be expected, nor the natural or inevitable consequence of the work he personally was engaged upon. The injury must therefore be ascribed to accident. The claimant's particular work had nothing to do with the painting operations going on about him. His work as a ship fitter related to the laying of plates in the boiler room; the painting was being done by others."

And this claim was approved.

But if, instead of Hill, one of the painters had been poisoned and incapacitated by the fumes of lead paint, a similar claim would not have been allowed by the solicitor. This is made perfectly clear by his decision in the John Freiman case.

John was a laborer in the Boston Navy Yard, and it was his duty to scale off lead-painted compartments on ships. He became incapacitated by "lead poisoning contracted in the course of his employment," and his superior officer certified that the injury was not due to negligence or misconduct. After John had suffered several weeks as a result of "painter's colic" and chronic lead poisoning, his claim was submitted. It was necessary to decide whether the law applies to disease due to the occupation. The solicitor declared:

"There is no such special provision made, and I can find nothing which would, in my judgment, justify its application to a case of lead poisoning or 'painter's colic.'"

The difficulties involved in legal technicalities become apparent. The following story, verbatim from the government report (page 201), about William Murray, who suffered with compressed air illness, strikingly illustrates the point:

"The claimant in this case is a laborer employed by the Reclamation Service, at Arizona shaft, Colorado River siphon. The claimant's duties required him to work in compressed air. In consequence, he was attacked with 'a severe case of bends,' which 'settled in nearly all parts of the body.' When originally presented the claim was disallowed on the ground that the bends is a disease, and diseases contracted in the course of employment as distinguished from injuries of an accidental nature are not within the operation of the compensation act. A reconsideration of this action 'with a view to the allowance of the claim, if the same is deemed to come within the letter of the statute as it seems to come within its spirit,' is now requested by the secretary of the interior, who writes that a refusal to approve this claim may cause a number of men to leave the work, as, on account of the bends, it is generally regarded as very hazardous."

And the former decision was reversed!

The solicitor has passed upon other cases of occupational disease, with some decidedly interesting results.

Mary A. Crellin was a folder of heavy paper at the Government Printing Office. Continuous strain upon her fingers and wrist caused a degeneration of the tendon sheath. A tumor or cystic growth developed. Mary was obliged to have it surgically removed. Then she thought the government, and not she, ought to stand the loss of wages due to her incapacity. This attracted attention. Said the medical officer of the Government Printing Office:

"This is the first case that I ever observed or noticed among folders, until I examined a number of skilled female laborers employed in this office upon the same vocation—that of folding sheets of paper—of which five presented a similar condition, but of such size as not to interfere with the manipulation of the hand."

The solicitor decided that in this tendon degeneration there was "no accidental element." It was "not due to injury." It was "due to excessive use" in the service of Uncle Sam. Mary's claim was denied.

Another case—a plate printer, J. B. Irving, who was on the night force in the Bureau of Engraving and Printing. In the course of a night he printed 900 sheets, and as he handled each sheet he looked for a few seconds at a bright engraved plate which reflected into his eyes. One night last March the bureau tried out some new electric lights, and their use was continued three successive nights. Irving thereupon stopped work, and the doctor diagnosed his case as "Retinitis conjunctivitis, both eyes." He was unable to keep his eyes open in a bright light. After investigation, the solicitor decided that in this case compensation should be granted on the ground that the injury was not anticipated, nor was it the result of any slow accumulation of trifling injuries.

Sunstroke, which is known as a disease, is compensated under the act. The straining of the ligaments about the wrist, known as "synovitis of the wrist" and scheduled as a disease under the British act, has been compensated. "Vaccinia" from vaccination is compensated. A long-standing

case of flat-foot was compensated, even though the use of a simple wedge made the injured one better than before.

John Sheeran, who contracted pneumonia due to exposure at the Soo Canal, was denied compensation. But J. B. Atkinson, who fell from a ladder and continued to work 181 days thereafter, until typhoid fever took him off within a week, "died by reason of his injury," because the fall "lowered his vitality, ... which rendered him peculiarly susceptible to typhoid infection, ... which resulted in his death."

The question may fairly be raised as to whether it is not a bit unfair to an administrative official to place him under the embarrassment of interpreting a statute so as to cover, for example, some but not all cases of industrial lead poisoning. Would it not be much better plainly to include occupational diseases in the law?

After more than four years of experience under the present law the government recently published the first official report upon its operation. Sixty-six closely printed pages of this report are devoted to embarrassing questions which have arisen because of claims arising out of occupational diseases. The administration in its awards has been as liberal as could be expected under the unfortunate legislative restrictions. The solicitor for the department has taken a keen interest in its operation. He has been faithful and alert. One of his most urgent recommendations for a change in the law is that it be extended to embrace occupational diseases.

The present federal law is known as the Workmen's Compensation Act of May 30, 1908, and is America's pioneer compensation law. It was a step forward, but only a step. Fortunately, state legislatures have not copied its main provisions, for they are totally inadequate. This federal law applies to only about one-third of our 350,000 civilian employees. It grants no relief for incapacity lasting less than fifteen days, it makes no provision for medical treatment, and one year's wages is the maximum benefit even for total blindness or death. In fact, the present law is so deficient that its original sponsors now waste no words in its defense, but frankly apologize for its shortcomings. "Not a revision," says one in a position to know, "but a new law is needed."

The draft of a new law, prepared after months of careful investigation of experience of this and all other compensation acts, and drafted with infinite care at the instigation of the Association for Labor Legislation, has been introduced in Congress by Senator Kern. Surely the United States should now provide for its own government employees incapacitated by industrial accidents and occupational diseases a system of safety and sanitation coupled with compensation at least equivalent to that furnished by the most progressive nations of the world. The bill now before Congress offers this immediate opportunity.

Nor can the state legislatures longer ignore the injustice of this arbitrary distinction between accidents and diseases due to the peculiar conditions of employment.

In a pamphlet on Industrial Diseases and Occupational Standards, published in May, 1910, the writer urged immediate consideration of this problem, and said:

"No intelligent person can go far in the study of compensation for industrial accidents without realizing that a logical consideration of the facts must lead likewise to compensation for industrial diseases."

Since then three momentous years have passed. One state after another is preparing to meet this problem, which becomes steadily more pressing. One of the three great national political parties now pledges itself to work unceasingly in state and nation for trade disease compensation.

Wisconsin has the promise of relief in the political platform of the present administration; Ohio, by recent constitutional amendment, is prepared for action; Pennsylvania is following this example; several states, including Massachusetts and Michigan, by a liberal interpretation of present laws, are coquetting with the issue; New Hampshire has boldly introduced specific legislation on the subject.^[2]

^[2] In 1912 the Association for Labor Legislation prepared, in co-operation with the United States Bureau of Labor and the Library of Congress, a critical bibliography on industrial diseases. Fifty printed pages of titles were thus made available on this important subject. European countries have published volumes on compensation for industrial diseases, but, as far as can be learned, this is the first American article under this title.

Leading countries of Europe have already taken this step. Great Britain in her Workmen's Compensation Act of 1906, in addition to accidents, included in the first schedule six diseases of occupation. That schedule has been extended until it now includes no less than twenty-four distinct maladies due to peculiar conditions of employment. Germany, as a result of the experience of a quarter of a century, in her new imperial code expressly has declared for similar action. Switzerland, in her system accepted by referendum vote in February, 1912, makes like provision for insurance against occupational diseases. The government of Holland, in November, 1912, laid before Parliament a bill to regulate the insurance of workmen against industrial diseases in connection with the proposed sickness insurance.



DOUBLE WRIST-DROP

Hands of workman paralyzed for sixteen years as result of lead poisoning. Five of his fellow workmen were killed by lead poisoning before they were forty. Victims of lead poisoning are not compensated under American laws because technically an occupational disease is "not an injury."

The arguments used so effectively by advocates of compensation for accidents, and now so generally accepted by all men, apply with even greater force in the consideration of relief for the victims of occupational diseases. No one will doubt, for example, that placing the financial cost of lead poisoning upon the lead industry will promote greater cleanliness in the lead trades. It will pay to clean up. A considerable part of the money now paid to employers' liability companies and to ambulance chasers could, under a just system of compensation, go where it belongs—to the injured workman or his family. Expensive, annoying, and unsatisfactory litigation could be reduced to a minimum. Information concerning special danger points in industry would be automatically pointed out to the factory inspectors in a manner both prompt and sure. Unnecessary occupational diseases would then be prevented, and that is the real problem.

The principle is admitted that workmen should be compensated for injuries by accident arising out of their employment. It is only consistent that incapacity caused by diseases due to the employment should also be included. Some diseases are, in the ordinary use of the term, accidental. But many people work where trade diseases of an insidious nature are contracted and where there is constant risk of illness on that account. These diseases are as serious as accidents. There is no social justification for drawing an arbitrary line of distinction—the principle of compensation is no longer in an experimental stage. A compensation law should include, says Sir Thomas Oliver, the leading English authority on the subject, "industrial diseases, the consequences of which may be immediate or remote, and which are often more severe than accidents."

It must be admitted that even our discredited system of employers' liability has afforded occasional relief to the victims of accidents. But even this uncertain and irregular protection, poor as it is, has in most instances been denied to workers exposed to the creeping horror of industrial disease. The exact occupational cause of the affliction is, of course, more difficult to prove. The employee is thus placed at still greater disadvantage in dealing with his employer. American judges, basing their opinions on outgrown decisions of the British House of Lords, have declared that "industrial injuries" include only those afflictions of an accidental nature whose cause can be ascribed to a definite point of time, and have thus almost universally barred even from the occasional and expensive relief of employers' liability the victims of such typical maladies as the match maker's "phossy jaw," the lead worker's "wrist-drop" and painter's colic, the boiler maker's deafness, the glass worker's cataract, the potter's palsy, the hatter's shakes, and the compressed air worker's bends.

The public has not yet forgotten pitiful cases where match manufacturers, through the work of their attorneys, were able to deny all financial relief to their victims of "phossy jaw." And there are cases now pending in the courts where men totally blinded by the fumes of wood alcohol have year after year sued in vain for some financial relief from brewery companies which employed them to varnish the inside of beer vats.

Occasionally, however, large awards have been made. But they, as in the case of damage suits arising out of accidents, encourage further expensive litigation. One case of wood alcohol poisoning in Ohio (Joseph Frank vs. The Herancourt Brewing Co., 82 O. S., 424) is now a matter of record. The Supreme Court compelled the employer to pay \$12,500, with interest and costs, aggregating over \$15,000.

"After five years of litigation, six hearings in three different courts, including two trips to the Supreme Court, printing of several thousand pages of record testimony and briefs, taking voluminous depositions in different parts of the country involving great expense, during which the injured workman—in this instance rendered blind—was totally unable to support his wife and family, the wife being obliged to work at nights in downtown cafes, scrubbing floors after midnight, in order to provide scant food for herself and babies while the latter slept."

This verdict is of peculiar interest, according to the well-known Cincinnati law firm which prosecuted the case, because it is the first instance so far as they have been able to ascertain in which there has been a recovery from injuries resulting from the poisonous influence of wood alcohol.

But do not be misled by this rare case. And do not hastily conclude that the new state insurance law in Ohio has rendered justice in such cases more certain, for the contrary is true. A victim of industrial lead poisoning appealed to the state board under that law, and the attorney general, on

October 26, 1912, ruled that disability due to lead poisoning was an occupational disease and "not an injury" under the act. Similar decisions have been made by the Washington State Insurance Department.

In fact, with the exception of occasional instances in two or three states, where claims have been paid by employers without protest, the victims of occupational diseases in America are still practically without relief.

THE SOCIAL AIM IN GOVERNMENT

SAMUEL McCUNE LINDSAY

PROFESSOR OF SOCIAL LEGISLATION, COLUMBIA UNIVERSITY

"This not a day of triumph; it is a day of dedication. Here muster, not the forces of party, but the forces of humanity. Men's hearts wait upon us; men's lives hang in the balance; men's hopes call upon us to say what we will do. Who shall live up to the great trust? Who dares fail to try? I summon all honest men, all patriotic, all forward-looking men to my side. God helping me, I will not fail them, if they will but counsel and sustain me!"

—Thus spoke the President of the United States in his inaugural address. Legislation in nation and state, giving expression to the will of the people and often to their aspirations, is supposed, in theory at least, to emanate from the representatives of the people. In European governments there is usually a privileged initiative on the part of the executive branch of the government or the administrative officers who represent the electoral majority, that is, "the government of the day." Thus the government bills in the British Parliament are the only ones sure of full consideration. In American legislatures a somewhat similar role is played by the President and the governors of the states in their legislative programs as outlined in the messages they send in accordance with constitutional prerogative or command. As party leaders they voice the dominant wishes of the voters and interpret public opinion; as chief executives they exercise great power over the legislatures in compelling compliance with the people's mandates.

A comparison and study of the subject-matter of President Wilson's inaugural and the inaugurals or messages of thirty-five governors opening legislative sessions since January 1 of this year, shows the great influence of the progressive forces of the nation which were victorious in all parties and in all of the states at the polls in November. A more confident note, new in most cases, is struck in all these pronouncements. It is the social spirit and the social conscience in every community that seeks and demands a new adjustment of law and government to human needs, and for the people, a new freedom.

President Wilson voices this new feeling best.

"Nor have we studied and perfected the means by which government may be put at the service of humanity, in safeguarding the health of the nation, the health of its men and its women and its children, as well as their rights in the struggle for existence. This no sentimental duty. The firm basis of government is justice, not pity. These are matters of justice. There can be no equality of opportunity, the first essential of justice in the body politic, if men and women and children be not shielded in their lives, their very vitality, from the consequences of great industrial and social processes which they cannot alter, control, or singly cope with. Society must see to it that it does not itself crush or weaken or damage its own constituent parts. The first duty of law is to keep sound the society it serves. Sanitary laws, pure food laws, and laws determining conditions of labor which individuals are powerless to determine for themselves are intimate parts of the very business of justice and legal efficiency.

"These are some of the things we ought to do, and not leave the others undone, the old-fashioned, never-to-be-neglected, fundamental safeguarding of property and of individual right. This is the high enterprise of the new day; to lift everything that concerns our life as a nation to the light that shines from the hearth-fire of every man's conscience and vision of the right. It is inconceivable that we should do this as partisans; it is inconceivable that we should do it in ignorance of the facts as they are or in blind haste. We shall restore, not destroy. We shall deal with our economic system as it is and as it may be modified, not as it might be if we had a clean sheet of paper to write upon; and step by step we shall make it what it should be, in the spirit of those who question their own wisdom and seek counsel and knowledge, not shallow self-satisfaction or the excitement of excursions whither they cannot tell. Justice, and only justice, shall always be our motto.

"And yet it will be no cool process of mere science. The nation has been deeply stirred, stirred by a solemn passion, stirred by the knowledge of wrong, of ideals lost, of government too often debauched and made an instrument of evil. The feelings with which we face this new age of right and opportunity sweep across our heartstrings like some air out of God's own presence, where justice and mercy are reconciled and the judge and the brother are one. We know our task to be no mere task of politics, but a task which shall search us through and through, whether we be able to understand our time and the need of our people, whether we be indeed their spokesmen and interpreters, whether we have the pure heart to comprehend and the rectified will to choose our high course of action."

Governor Cox of Ohio, speaking for a state that had just made many fundamental changes in its organic law by adopting the recommendations, almost in their entirety, of a constitutional convention, says:

"Progressive government, so called, which means in its correct understanding, constructive work, along the lines pointed out by the lamps of experience and the higher moral vision of advanced civilization, is now on trial in our state. Every constitutional facility has been provided for an upward step and Ohio, because of the useful part it has played in the affairs of the country, is at this hour in the eye of the nation.

"The state has the resources, human and material, to make a thorough test of the principle of an enlarged social justice, through government, and the results of our labors will extend beyond state borders. A thorough appreciation, therefore, of the stupendous responsibility before you, and full recognition of the probable insidious resistance to be encountered, will add immeasurably to your equipment to meet the emergency. If I sense with any degree of accuracy the state of public mind, I am correct in the belief that a vast preponderance of the people of all classes have faith both in the wisdom and the certain results of a constructive progressive program of government. Let us in full understanding of the consequences of our acts maintain this measure of public confidence and encourage the faith of those who are honestly skeptical because of the apprehension generated in their minds by a third class, which may be unconsciously prompted by sordid impulses developed by unbroken preferences of government.

"No fair-minded person will dispute the logic nor question the equity of any plan which contemplates legislative action entirely within the limitations of suffrage endorsement. If the legislature, in the passage of a single law, runs counter to public desire or interest, the people through the referendum have the means to undo it. No greater safeguard can be devised by the genius of man, and to question either the moral or practical phase of this arrangement, is to

admit unsoundness in the theory of a republic. In other days changes in government such as are made necessary everywhere by our industrial and social conditions, would have been wrought by riot and revolution. Now they are accomplished through peaceful evolution. He must be indeed a man of unfortunate temperamental qualities who does not find in this a circumstance that thrills every patriotic fiber in his being."

Governor Sulzer of New York, in similar vein, says, speaking of the proposed amendment to the constitution of the United States, providing for the popular election of senators:

"I favor this change in the federal constitution, as I shall every other change that will restore the government to the control of the people. I want the people, in fact as well as in theory, to rule this great republic and the government at all times to be responsive to their just demands."

Again, in speaking of the value of human life and its conservation, Governor Sulzer says:

"If Americans would excel other nations in commerce, in manufacture, in science, in intellectual growth, and in all other humane attainments, we must first possess a people physically and mentally sound. Any achievement that is purchased at the continued sacrifice of human life does not advance our material resources, but detracts from the wealth of the state. The leaders of our civilization now realize these fundamental truths, and the statesmen, the scientists, and the humanitarians are endeavoring more and more to protect human life and to secure to each individual not only the right to life, but the right to decent standards of living.

"We have had to change old customs and repeal antiquated laws. We must now convince employers that any industry that saps the vitality and destroys the initiative of the workers is detrimental to the interests of the state and menaces the general welfare of the government. We must try to work out practical legislation that will apply our social ideals and our views of industrial progress to secure for our men, women and children the greatest possible reserve of physical and mental force.

"I hold it to be self-evident that no industry has the right to sacrifice human life for its profit, but that just as each industry must reckon in its cost of production the material waste, so it should also count as a part of the cost of production the human waste which it employs.... No business has an inalienable right to child labor. No industry has a right to rob the state of that which constitutes its greatest wealth. No commerce that depends on child labor for its success has a right to exist. Let us do what we can to protect the children of the state and preserve their fundamental rights.... Human life is infinitely more valuable than the profit of material things. The state for its own preservation has the right to demand the use of safer and more hygienic methods, even if at greater cost of production to the employer. Occupational diseases should be studied, and the results of careful investigation embodied in laws to safeguard the health and lives of the workers."

Governor Craig of North Carolina, another Democrat, but from the more conservative southland, strikes the same note, when he says:

"We have not realized the moral benefits that should have resulted from modern progress. Avarice has been stimulated; hope and opportunity have been denied; antagonism and resentment have been generated. All classes have suffered. We realize the conditions; the

injustice has been uncovered. It cannot stand in the clear, calm and resolute gaze of the American people. They are determined that our law shall be based upon a higher conception of social obligation and that our civilization shall mean a higher social life. They have put their hands to the plow and will not look back."

Let me quote from one more Democratic governor, this time a voice from the far West. Governor Hunt of Arizona says:

"Recent political events of national magnitude and world-wide importance clearly prove the people's awakening to their necessities, their duties and responsibilities. The overwhelming triumph of militant progressive democracy and the simultaneous springing into prominent existence of another great party founded upon and professing the championship of those cardinal principles of popular government which have long been synonymous with progressive democracy, discloses a miraculous growth of progressive conviction, a well-nigh unanimous determination on the part of the people to assume full control of the government which, while over them, is rightfully of and for them, marks a leading epoch in the history of the world's advancement."

The National Progressive Party could scarcely have hoped to accomplish more than to bring such sentiments and these high aims to the fore, in the officially announced purposes of their late antagonists who were the victors in the recent elections. When we remember, however, the initiative and responsibility in legislation which the chief executive in nation and state has come to have in our system, the fact that the above quoted passages are typical of all the governors' messages is doubly significant. It warrants us in believing that the hour has struck when the things for which the social workers of the country have striven will become vital in the organization of American society.

More detailed examination of the recommendations of the governors shows some interesting tendencies. If the advice of the governors is followed some system of workmen's compensation will supplement or supersede our antiquated and unsocial system of employers' liability. This is the subject upon which public opinion seems to have most definitely crystallized. No less than twenty-one governors make definite favorable recommendations, and in three cases (Arizona, California and Oregon) a state system of insurance is advocated. If all of these states were added to those that already have passed adequate compensation laws, the system of workmen's compensation would be extended practically over all of the industrial area of the United States. This result seems inevitable, although the work may not be completed in this legislative year.

Next to workmen's compensation in point of popularity seems to be the necessity for a public utilities law, or a public service commission, or the extension of the powers of state supervisory authorities over public service corporations. This is a subject of positive recommendation on the part of fourteen governors. In an equal number of states the pending amendment to the United States constitution providing for the popular or direct election of Senators receives a favorable recommendation, while in the other states the governors transmit the amendment without comment for appropriate action by the legislature. The Kentucky Blue Sky Law, or some similar provision for state supervision of investment proposals and securities offered for public subscription, is the subject of comment and positive recommendation in eleven states.

In an equal number of commonwealths important recommendations are made with respect to increasing the powers of their labor departments, including factory inspection and other provisions for the enforcement of the labor laws. Several governors express a desire for a much more serious

recognition of the state's duties in its relations to labor, especially that of women and children. In some instances—notably Ohio, where an industrial commission is proposed, Wisconsin, whose industrial commission, already the model for several other states, is to have increased powers, and New York, for which an industrial commission is also proposed—such recommendations are far-reaching and would mean a practical reorganization of this department of state activity. The governor of Rhode Island recommends the adoption of a fifty-four hour law to harmonize with recent legislation in New York and Massachusetts. In North Carolina a stronger child labor law is urged, and in Wyoming the prohibition of the employment of boys under sixteen in mines. This would bring Wyoming up to the standard already adopted in the leading mining states.

Popular government still has need of better agencies for expression, and numerous reforms in the organization of state governments are proposed. Restlessness under antiquated constitutional limitations is manifest everywhere. President Wilson in his last message as governor of New Jersey, voiced this feeling in strong language. He said:

"I urge upon you very earnestly indeed the need and demand for a Constitutional Convention. The powers of corrupt control have a numerous and abiding advantage under our constitutional arrangements as they stand. We shall not be free from them until we get a different system of representation and a different system of official responsibility. I hope that this question will be taken up by the legislature at once and a constitutional convention arranged for without delay, in which the new forces of our day may speak and may have a chance to establish their ascendancy over the rule of machines and bosses."

Similarly a constitutional convention is urged or numerous constitutional amendments are proposed in six other states. The short ballot is advocated in six; the initiative, referendum and recall as a means of extending the control of the people over their legislation is recommended in nine states, in most of which a constitutional amendment would be necessary; and the adoption of rules to carry out a constitutional amendment already passed is recommended in Idaho. A larger measure of home rule for cities is urged by the governors of six states (New York, New Jersey, Pennsylvania, Ohio, Michigan and Missouri). The United States constitutional amendment providing for the income tax is urged for favorable adoption in three states. An amendment to the state constitution providing for woman suffrage is favorably recommended in five states (New York, Pennsylvania, Montana, Nevada and Iowa), and the immediate extension of suffrage to women in municipal affairs by the governor of Connecticut. Direct Primaries are still an issue in two states (New York and Tennessee). The need for stronger corrupt practices acts is presented in three states. Three governors also declare for a direct presidential preference primary (Iowa, Minnesota and Wyoming), while ballot reform is advocated in three states (Maine, Michigan and Wyoming).

Better legislative methods and the establishment of a legislative reference, research and drafting bureau are proposed in four states (Arizona, Minnesota, Ohio and Oklahoma). The governor of Arizona asks for an anti-lobbying statute. The fiscal policy of the state is a matter of some comment in practically every message, and in five states measures for taxation reform are proposed. In five states, including one of the previous group, the governors recommend an increase of inheritance taxes or the establishment of an inheritance tax where it does not already exist.

Constructive and far-reaching measures are suggested pertaining to public health. A decided awakening is noticeable in this field. Eight governors recommend more or less definite reorganization of the public health service and an extension of the powers of the public health

authorities, state and local. In one additional state (New York) the governor has appointed an important commission. The results of its labors will probably be enacted into law at this session of the legislature. Pure food legislation and better protection of weights and measures receive attention in two states each, as does the greater restriction of the liquor traffic in two states. Special provision for the care of tuberculous persons is mentioned in five states.

Another important and popular subject of recommendation, in which the results of the last annual conference of governors are noticeable, concerns the better care of prisoners—their employment in outdoor work and opportunities for earning wages, part of which shall go to reimburse the state for the cost of their maintenance and part to the support of their dependent families. These matters are subjects of favorable recommendation in nine states. The general reform of the criminal law, especially the shortening of legal processes and the restriction of the right to appeal, is urged in four states, including Iowa, in which the governor recommends the abolition of grand juries.

A direct tax in support of higher education is urged in three states, and provision for the wider use of school buildings as social centers in the same number. Even more significant, the governors of two states (North Carolina and Tennessee) urge state-wide compulsory education. In four commonwealths co-operation with other states is proposed in accordance with the recent recommendation of President Taft addressed to the governors of several states. This urged an extension of rural credits and the provision of some plan similar to the land banks in foreign countries, to help the farmer get the necessary capital for a better system of agriculture. Minimum wage laws are proposed in five states. In two of these and one additional state public aid to dependent widows and mothers with children is recommended.

Curiously enough, the reform of marriage laws and of those providing a remedy for desertion and non-support, a subject reported upon by the Uniform Law Commissioners, does not figure so largely in the governors' recommendations as would be supposed. The uniform law commissioners have proposed an excellent and very carefully worked out statute for uniform marriage and marriage license laws. This receives only partial endorsement at the hands of three governors, while stricter desertion and non-support laws also have the endorsement of three governors.

Guarantee of bank deposits is proposed in three states and three of the western states (Arizona, Missouri and Tennessee) have recommendations for an extension of state authority, or the establishment of a state department, to induce immigrants to settle within their borders. A better regulation of prize-fighting is being agitated in Nevada. Its prohibition, along with that of gambling, is strongly urged by the governors of New Mexico and Oklahoma. The governor of Arizona asks for a statute prohibiting the carrying of concealed weapons, while the governor of South Carolina asks the legislature to repeal the present statute on this subject in that state.

Non-partisan election of judges is recommended in Idaho and Pennsylvania, and the Kansas legislature is asked to petition for an amendment to the constitution of the United States to provide for the election of federal judges.

Better care of juvenile delinquents, state-wide supervision of moving picture shows, stricter regulation of loan sharks, better inspection of mines, and compulsory arbitration of labor disputes are each recommended in at least one state.

Thirty-nine legislatures have already met this year, and some of them have completed their legislative sessions. Two more will convene within the next three months, making forty-one in all which will play a part this year in the formulation of the statute law of the country. Our statute law is already increasing in volume at a rate that has caused some alarm. It is sorely in need of revision in many important particulars. Statesmen and reformers alike desire earnestly that it be undertaken

with greater care and more painstaking labor in order that our state laws may give better expression to the present standards of conduct and to the needs of our own times.

THE SAND BED

CHARLES W. JEROME

I have a sand bed, and I play
There in the sand for half the day.

And mother comes, and sits by me;
And little sister likes to see

The many things I make of sand.
But she's too young to understand

About the houses and the hills
The mines and stores and flouring mills

And then I make believe, and say
My sand bed is the sunny bay;

These blocks are boats, and far away
They sail all night and sail all day,

And carry iron. When they return
They bring us coal that we may burn.

And now my sand bed is a farm.
This is the barn. Here, safe from harm,

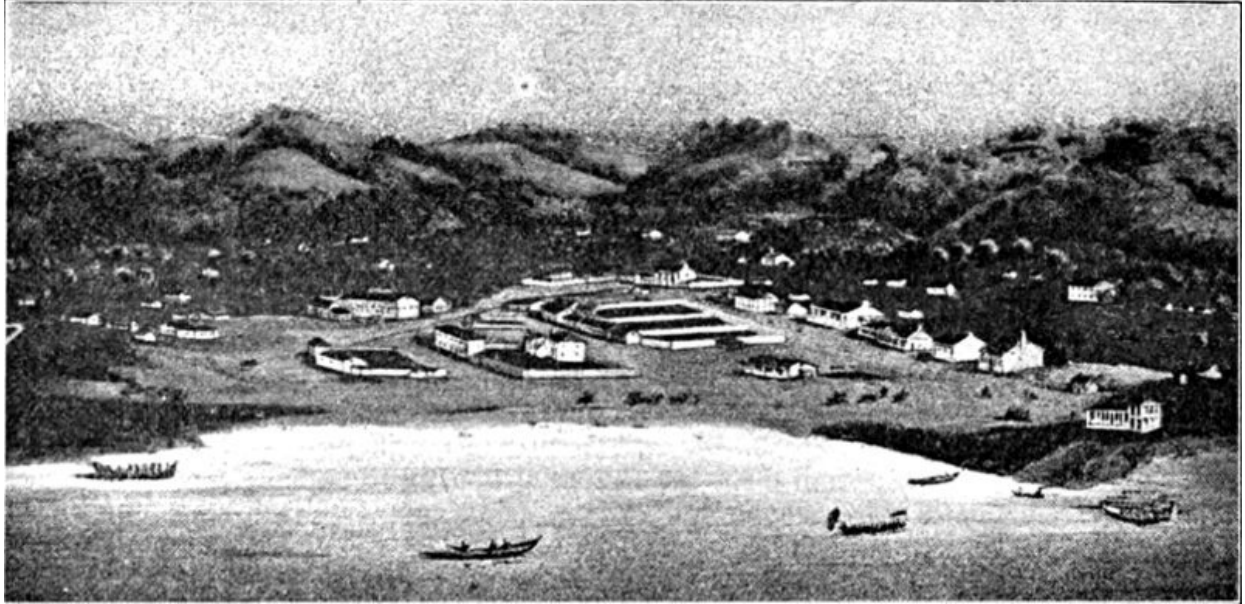
My horses and my cows I keep.
These sheds are for the wooly sheep.

And there you see my piggies's pens.
This yard holds in the lively hens.

This is the garden, where I hoe
My plants; and here the flowers grow.

These sticks are pines, so straight, so tall
And dark. But these aren't half of all

The things I make each pleasant day
Out in the sand bed where I play.



MONTEREY, CALIFORNIA, IN 1842

A view of the town as it was before the "Gringo" came. Four years later during the Mexican War Commodore Stockton captured Monterey and left Walter Colton, a naval chaplain, in charge as Alcalde.

A JUDGE LINDSEY OF THE "IDLE FORTIES"

LAURA B. EVERETT

Under the colorless title *Three Years in California* was published in 1850 the diary of Walter Colton, elected Alcalde of Monterey in 1846, who, during his term of office presented what was, for that day, a singular spectacle of tolerance, humanity and purity of administration. He can, indeed, be reasonably compared with Judge Lindsey in the courage and originality displayed in his dealings with the criminal cases brought before him.

Colton's work in Monterey succeeded a period spent as editor of the Philadelphia *North American*, and he established later *The Californian*, the first newspaper published in California.

The office of the Alcalde combined administrative and judicial functions and, not seldom, even legislative ones. Colton was oppressed by his power and its responsibility. "Such absolute disposal of questions affecting property and personal liberty," he observes, "never ought to be confided to one man. There is not a judge on any bench in England or the United States whose power is so absolute as that of the Alcalde of Monterey." But he brought to his work in all its details an unflagging zeal and constant personal attention which made his administration unique in the history of the time.

In minor matters, where, as he says, "the Alcalde is himself the law," Colton devised methods of appealing to the better instincts of the wrongdoer. "There is a string in every man's breast," he writes, "which, if you can rightly touch, will 'discourse music.'" Colton, we see from his diary, put a sensitive finger on this string in many a heart.

His ideas of punishment belong to the present. "It is difficult," he says, "to discriminate between offences which flow from moral hardihood and those which result in a measure from untoward circumstances. There is a wide difference between the two; and an Alcalde under the Mexican law has a large scope in which to exercise his sense of moral justice. Better to err a furlong with mercy than a fathom with cruelty. Unmerited punishment never yet reformed its subject; to suppose it is a libel on the human soul."

The following extracts from his account of cases brought before him are representative:

"A lad of fourteen years was brought before me today charged with stealing a horse. The evidence of the larceny was conclusive, but what punishment to inflict was the question. We have no house of correction, and to sentence him to the ball and chain on the public works, among hardened culprits, was to cut off all hope of amendment and inflict an indelible stigma on the youth; so I sent for the father, who had no good reputation himself, and placing a riata in his hand, directed him to inflict twenty-four lashes on his thieving boy. He proceeded as far as twelve, when I stopped him; they were enough. They seemed inflicted by one attempting to atone in this form for his own transgressions. 'Inflict the rest, Soto, on your own evil example; if you had been upright yourself, you might expect truth and honesty in your boy. You are more responsible than this lad for his crime; you can never chastise him into the right path, and continue yourself to travel in the wrong.'"

"Today I remitted the sentence of my prison cook. He is a Mulatto, a native of San Domingo; had drifted into California, was attached in a subordinate capacity to Colonel Fremont's

battalion; and while the troops were quartered in town had robbed the drawer of a liquor shop of two hundred dollars. For this offence I had sentenced him to two years on the public works. Discovering early some reliable traits about the fellow, ... I soon made him cook to the rest of the prisoners, and allowed him the privilege of the town, so far as his duties in that capacity were required.... I have trusted him with money to purchase provisions, and he has faithfully accounted for every shilling. He has always been kind and attentive to the sick. For these faithful services I have remitted the remainder of his sentence, which would have confined him nine months longer, and have put him on a pay of thirty dollars per month as cook."

The Alcalde settled family difficulties of all varieties, from the case of the grown son who struck his mother to that of the man who wanted a divorce because of suspicions he entertained of his wife's conduct during his absence in Mexico. The judge questioned the plaintiff severely as to his own behavior during the stay in Mexico, and convinced him that the wife, though indiscreet, was too good for him.



From "*Sea and Shore*"

WALTER COLTON

**Alcalde of Monterey in 1846. The position combined
administrative, judicial and even legislative duties.**

After nearly six months as Alcalde, Colton writes:

"Of the women I have had to deal with here the washerwomen are the most unmanageable. Two of them entered my office today as full of fight as the feline antagonists of Kilkenny. It seems they had been washing in one of the pools created by the recent showers, when one had taken that part of the margin previously occupied by the other. War offensive and defensive immediately commenced. One drew a knife which had a blade two mortal inches in length, and the other a sharp ivory bodkin. But what their weapons wanted in terror, their ungentle anger supplied.

"At last one cried out: 'The Alcalde'; the other echoed it, and both rushed to the office to have their difficulties settled. Their stories ran together like two conflicting rivulets forced into the same channel. When the tumult and bubble had a little subsided, I began cautiously to angle for the truth—a difficult trout to catch in such waters. But one darter after another was captured, till I had enough to form some opinion of those that had escaped. These we discussed till bitter feeling, like biting hunger, became appeased. Both went away declaring either margin of the pool good enough, and each urging on the other the first choice."

One deficiency which Colton had to supply was the absence of a penitentiary system. To quote:

"There are no workhouses here, no buildings adapted to the purpose, no tools and no trades. The custom has been to fine Spaniards and whip Indians. The discrimination is unjust, and the punishment ill-suited to the ends proposed. I have substituted labor, and now have eight Indians, three Californians, and one Englishman at work making adobes [sun-dried bricks]. They have all been sentenced for stealing horses or bullocks. I have given them their task; each is to make fifty adobes a day, and for all over this they are paid. They make seventy-five, and for the additional twenty-five each one gets as many cents. This is paid to them every Saturday night, and they are allowed to get with it anything but rum. They are comfortably lodged and fed by the government. I have appointed one of their number captain. They work in the field; require no other guard; not one of them has attempted to run away."

Later, Colton had to deal with runaways; two Mexicans each telling him that the devil incited their flight, while one fellow who stayed behind in a jail delivery explained that he would not be seen running from Tophet in such company.

Of a convict who escaped and was brought back Colton says:

"If he will only stop stealing he may run to earth's utmost verge. He is rather a hardened character, but if he has a good vein in him I will try to find it. I always like to see a fellow get out of trouble, and sometimes I half forget his crimes in his misfortunes. This is not right, perhaps, in one situated as I am; but I cannot help it."



THE FIRST PAPER PUBLISHED IN CALIFORNIA
It measured only about 8x12 inches. The paper was established by Walter Colton who had had journalistic experience as editor of the Philadelphia North American.
This issue was published scarcely a month after the American occupation.

Colton decided that a new school house was necessary—"to be sixty feet by thirty, two stories, with a handsome portico. The labor of the convicts, the taxes on rum, and the banks of the gamblers must put it up," he writes. "Some think my project impracticable; we shall see,"—and he gives the following account of how some gamblers were made to contribute to this enterprise:

"A nest of gamblers arrived in town yesterday, and last evening, opened a Monte at the hotel."

After stationing a file of soldiers at the outer doors, Colton entered to find no one, "save one Sonoranian, composedly smoking his cigarito. I desired the honor of an introduction to his companions. At this moment a feigned snore broke on my ear from a bed in the corner of the apartment."

"'Ha! Dutre, is that you? Come, tumble up, and aid me in stirring out the rest.' He pointed under the bed, where I discovered a multitude of feet and legs radiating as from a common center."

"'Hallo there, friends—turn out.'... Their plight and discovery threw them into a laugh at each other." He and his secretary found others "in every imaginable position—some in the beds, some under them, several in the closets, two in a hogshead, and one up a chimney. Mr. R—from Missouri—known here as the 'prairie-wolf'—I found between two bed-ticks, half smothered with the feathers. He was the ringleader, and raises a Monte table wherever he goes, as regularly as a whale comes to the surface to blow. All shouted as he tumbled out from his ticks. Among the rest I found the Alcalde of San Francisco, a gentleman of education and refinement, who never plays himself, but who, on this occasion, had come to witness the excitement. I gathered them all, some fifty in number, into the large saloon, and told them the only speech I had to make was in the shape of a fine of twenty dollars each. The more astute began to demur on the plea of not guilty, as no cards and no money had been discovered, and

as for beds, a man had as good a right to sleep under one as in it. I told them that was a matter of taste, misfortune often made strange bedfellows, and the only way to get out of the scrape was to pay up. Dr. W—— was the first to plank down.

"'Come, my good fellows,' said the doctor, 'pay up, and no grumbling: this money goes to build a school house, where I hope our children will be taught better principles than they gather from the examples of their fathers.'"

Of how the labor of the prisoners united with the money of gamblers to build the needed school, he writes:

"One of the prisoners, an Englishman, ventured a criticism of the stonework of another prisoner, which revealed the fact of his being a stonecutter himself. I immediately set him at work at his old trade. But he feigned utter ignorance of it, and spoiled several blocks in making his feint good. I then ordered him into a deep well where the water had given out, to drill and blast rocks.... Finding that the well was to be sunk some twenty feet deeper, ... he requested that he might be permitted to try his chisel again. Permission was given, and he is now shaping stones fit to be laid in the walls of a cathedral. He was taken up for disorderly conduct, and he is now at work on a school house, where the principles of good order are the first things to be taught."

Colton gives an instance of trust justified on an occasion when, pressed for funds, he created a "trusty."

"The most faithful and reliable guard that I have ever had over the prisoners is himself a prisoner. He had been a lieutenant in the Mexican army, and was sentenced, for a flagrant breach of the peace, to the public works for one year. I determined to make an experiment with this lieutenant; had him brought before me; ordered the ball and chain to be taken from his leg, and placed a double-barrelled gun, loaded and primed, in his hands.

"'Take that musket and proceed with the prisoners to the stone quarry; return them to their cells before sunset, and report to me.'

"'Your order, Señor Alcalde, shall be faithfully obeyed.'

"A constable reconnoitered and found all well. At sunset the lieutenant entered the office, and reported the prisoners in their cells, and all safe.

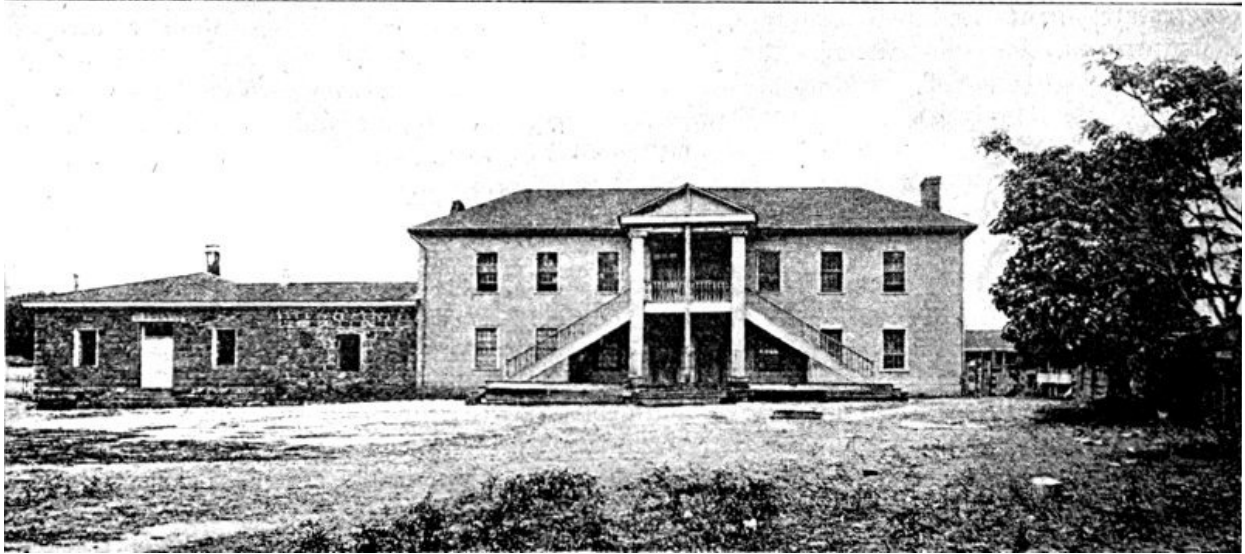
"'Very well, José, now make yourself safe, and that will do.' He accordingly returned to his prison, and from that day to this has been my most faithful and reliable guard."

"If there is anything on earth besides religion for which I would die," Colton declares, "it is the right of trial by jury." And he impanelled the first jury ever summoned in California. One-third were Mexicans, one-third Californians, and the other third Americans. The plaintiff spoke in English, the defendant in French, the jury, save the Americans, Spanish—"and the witnesses all the languages known to California."

"The inhabitants said it was what they liked—that there could be no bribery in it—that the opinion of twelve honest men should set the case forever at rest. And so it did, though neither party completely triumphed." He gives the credit for the satisfactory termination of this polyglot case to "the tact of Mr. Hartnell, the interpreter, and the absence of young lawyers."

When Colton Hall, the first state capitol and the pride to this hour of Old Monterey, was completed, Colton writes:

"The town hall on which I have been at work for more than a year is at last finished. It is built of a white stone"—now a beautiful deep cream—"quarried from a neighboring hill, and easily shaped. The lower apartments are for schools, the hall over them—seventy feet by thirty—is for public assemblies. It is not an edifice that would attract any attention among public buildings in the United States; but in California it is without a rival. It has been erected out of the slender proceeds of town lots, the labor of convicts, taxes on liquor shops, and fines on gamblers. The scheme was regarded with incredulity by many; but the building is finished, and the citizens have assembled in it and christened it with my name, which will go down to posterity with the odor of gamblers, convicts and tipplers. I leave it as an humble evidence of what may be accomplished by rigidly adhering to one purpose, and shrinking from no personal efforts necessary to its achievements. A prison has also been built, and mainly through the labor of convicts. Many a joke the rogues have cracked while constructing their own cage; but have worked so diligently I shall feel constrained to pardon out the less incorrigible."



COLTON HALL
The Capitol of California in 1849.



THE RIVER ROAD, KEENE VALLEY, NEW YORK

NEIGHBORLINESS AND A COUNTRY COMMUNITY

SARAH LOWRIE

With the growth of large cities in our country and the desertion of the farms for the town, there has been a less observable but quite as remarkable desertion of the city in favor of the country.

One would suppose that these two migrations would so balance each other that neither the town nor the country would suffer by the exchange of citizens. It would be reasonable to hope that going to the country would bring just the right impetus needed by the stay-at-homes of each community to brace them into new life.

But the thing has not worked out that way.

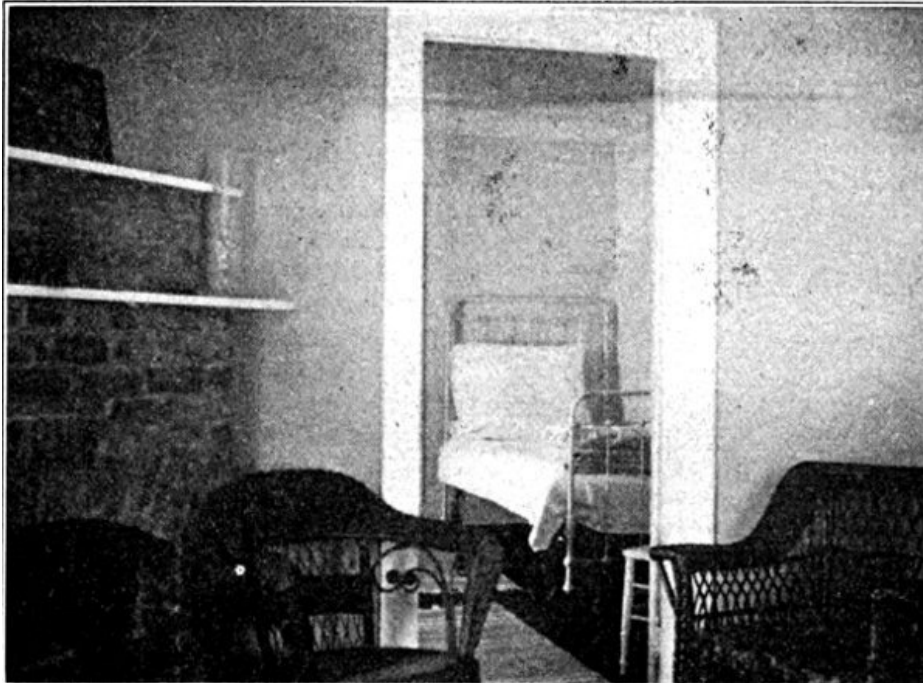
However much the shops and offices of the cities may have benefited by the advent of the farmers' sons and daughters, and however much the real estate agents and provision merchants of the country may have benefited by the advent of the well-to-do towns-folk, the morale of the country town, the ideals of the country people and the amalgamation of the native men with their new neighbors into a better citizenship have not prospered. Nor have the city institutions been able to replace the men of affairs who, having ceased to use the city except as a means for carrying on their business, have transferred their family and their leisure interests into the country.

The city churches, the city philanthropies, and the civic improvement organizations all tell the same tale: the rich men, the special executive men, the professional men, once their actual business engagements are over, turn their backs on the city with a sigh of relief and depart country-wards for rest and enjoyment for the night, for the week-end, and for the summer vacation. The city loses them, and they gain the country. But it must not be supposed that the country in any vital sense gains them. A man who has professedly moved from the town to the country for rest and pleasure, and who observably needs both, feels as free as a debutante to enjoy what is set before him in the way of diversion, with no moral obligation toward his neighbors but that of paying with a wry grin the outrageous prices levied upon all outsiders by the genial natives.

Without quite meaning to, without indeed quite realizing it, the richer men and women of this country, especially in our eastern states, have so shifted the obligation of neighborliness that they have the air of being transients everywhere and neighbors nowhere. Even their country places are not theirs year in and year out for as long as a single generation. We Americans like to change our minds and there is no telling what kind of scenery or what style of architecture we may fancy next.

One hears a great deal about the unfaithfulness of the Irish cook who may "up and leave" any day that she hears of a chance of "bettering herself" elsewhere; but the mistress's unrest is nothing to the plight of the farmer when one considers the lottery of the city folks. The gamble of his crops and the weather is nothing to this other gamble. For the farmer knows that no power under heaven can keep the city man satisfied with his site, his house with five bathrooms, his fancy chicken run, and his concrete garage if the whim should take his wife that the environment was no longer a suitable one for the children. There is no romance, therefore, to the farmer about either his potato crop or his city neighbor. He knows it is not philanthropy that led the city man to buy five acres of poor farm land at the highest notch price, and that no desire for his company has urged the new comer to plant his house on the other side of the back pasture. Being a sensible farmer he makes

what profit he can out of his potatoes and his city neighbor before either crop has time to depreciate in value.



QUARTERS OF VISITING NURSE

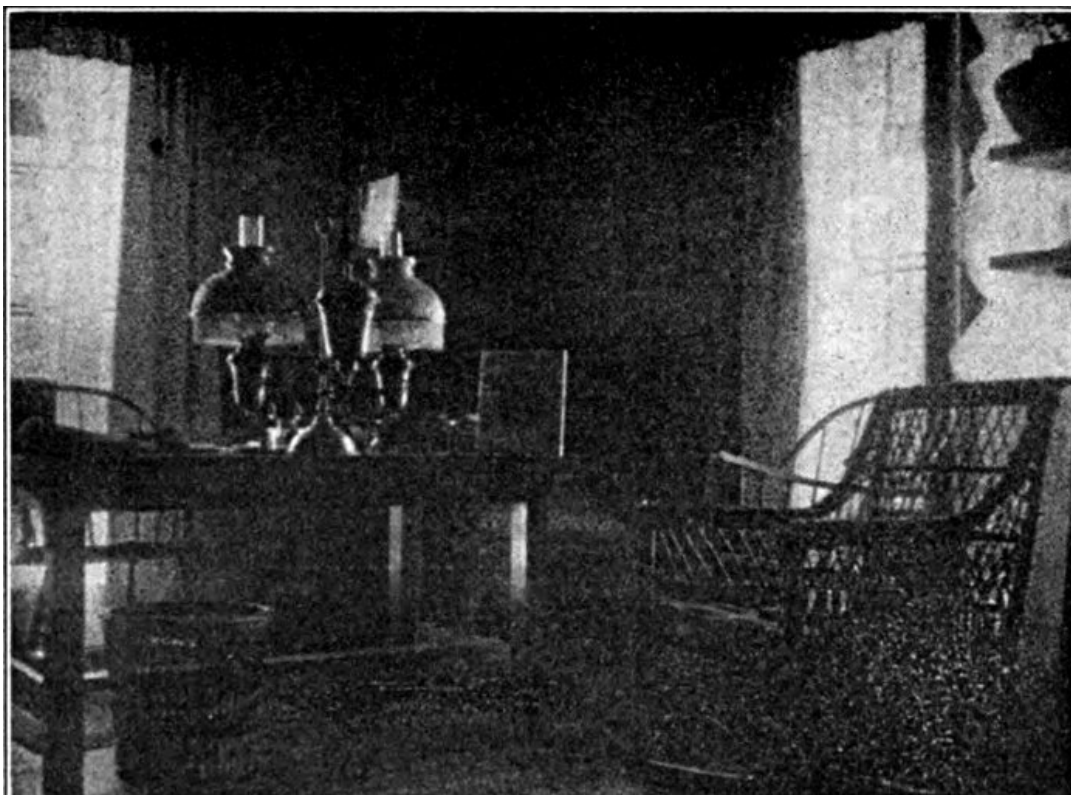
"What are you city people for, but to be skinned?" was the frank remark of one of my nearest country neighbors one day, apropos of an outrageous bit of sharp dealing on his part as property appraiser for that district. It was not a flattering summing up of a relationship, nor did its grim humor hide any more indulgent version of our economic value as neighbors. In fact we were not, nor ever had been accepted by him and his kind as neighbors. We were a crop. A crop more lucrative than his potatoes, but from our arbitrary and unexpected demands, and the shortness of our seasons, and the variation of our types a much more "pernickery" crop to deal with. Perhaps I should have been flattered by his frankness, but I was not! For the moment indeed, I even resolved to deal no more with him or his, but on second thought I concluded that, although he would be the loser of some \$200, I would be out a wash-woman, a chore boy, many dozens of fresh eggs, many quarts of milk, a care-taker for the house during the winter, and an immunity from his cows in my garden in the summer. In fact, I stood to lose double as much as he, if peace of mind and leisure to enjoy my home could be computed in hard cash. I concluded therefore that it would not pay to get mad.

But the remark rankled and in the end set this and that motive to work in my mind until my brain and heart became fallow ground for the cultivation of another sort of relationship than that of city folk and native, buyer and seller, employer and employed, or even giver and receiver. In the end we learned to be neighbors—he and I—not because his ground adjoined mine, but because we both began to feel a common civic interest in the same village and in the same country side, and because in a very particular and picturesque sense we both shared in an enterprise from which we both derived comfort and pleasure. The change in me was greater than the change in him for he had always been interested in the village life apart from his property, and apart from his comfort, and during all the year. The bond that brought us together was not the church, nor the library, nor the base-ball field—all donations in times past of the summer people to the natives, but it was the

Neighborhood House, a donation from the country people and the summer people alike, not to any particular class but to all the dwellers in that mountain valley.

Of course, I realize that the particular Neighborhood House, which fits so well the need of our valley, might not do for just any valley. For instance, our valley in the Adirondacks has a scattered population of nearly a thousand people with two villages about five miles apart, and several little settlements here and there among the hills. In the larger village there are perhaps one hundred children in the school. The nearest hospital lies twenty-four miles across a mountain road, and several hours by boat across Lake Champlain at Burlington, Vt. An infirmary that could be used by the natives for long illnesses, and by the city cottagers for emergency operations was vitally needed; so our Neighborhood House has a sunny airy infirmary and a perfectly equipped little operating room.

Our village and the country people and the lumber camps back in the mountains can only depend on the services of two physicians, one of them an old and feeble man. To supplement their visits and for emergency calls for the summer visitors a district nurse was needed, so a bed-room, bath-room, and pleasant sitting-room for such a nurse were planned in the Neighborhood house to connect with the infirmary. To supplement the somewhat limited primary grades in the village schools and to provide occupation for restless little city children, a summer kindergarten had been established and proved most successful, so on the lower floor of the Neighborhood House a large, many-windowed room was set apart to be used, not only for this purpose, but for adult classes in domestic science, sewing, embroidery and dancing. There was no proper room in the village for fairs, church suppers, glee clubs, rehearsals, informal village meetings, etc. There was added, therefore, to this large room a kitchen to be used in connection with it for such entertainments and for cooking classes. There had been a successful men's club in the village for years, but the women and girls had no common meeting place and indeed no real center of interest outside their homes. A woman's club room therefore was made an important part of our Neighborhood House. It has an open fireplace, a store closet and cupboards, a writing table, tea and game tables, comfortable chairs, and a pretty color scheme, with prints and water colors on the wall, oriental rugs on the hardwood floors, pleasant chintzes, books, and flower bowls.



CORNER OF WOMEN'S CLUB

Though the village women had been long accustomed to make extra pin-money by selling eggs, maple sugar, balsam pillows, bread and cake, and rag-carpet rugs, there has been no store where these things could be ordered. We set apart one room in our Neighborhood House, therefore, for a Village Exchange, which was open for three months in the summer. During the winter months this pleasant little room was used by the boys for a game room. There was no hotel or even boarding house in the village for transient guests, which remained open throughout the winter; so two guest rooms were set aside in our Neighborhood House to be used by the strangers, lecturers, clergymen, visiting surgeons, and city visitors who might pass that way during the late autumn and the winter months.

Neither the village people nor the summer cottagers were well supplied with sick room appliances, and among the poorer citizens of the valley there was even a lack of necessary articles for confinement cases, while crutches, invalid chairs, and wheel chairs were difficult to procure in an emergency by rich and poor alike. So an emergency closet, stocked with such things was set aside for general use in the Neighborhood House. The rooms in the rest of the house were the house dining-room and kitchen, the pantry, cool room, linen and store closet, the stewardess's bed-room, and an up-stairs sleeping porch for the infirmary, and a splendid attic. Outside the house were the wood shed, earth closet, tool shed and ice house, an ample vegetable and fruit garden, a lawn space for croquet and tether ball, a small flower and shrub garden, and wide verandas.

The house was originally a boarding house, and the only additions which had to be made to the original structure were the cellar, summer kitchen and the sleeping porch. The total cost of these additions and of the equipment and alterations including all gifts came to about \$3,000. The original purchase price of the property was \$2500. The cost of maintaining the house including the salary of the visiting nurse, the wages of the stewardess, and all household expenses, as well as the

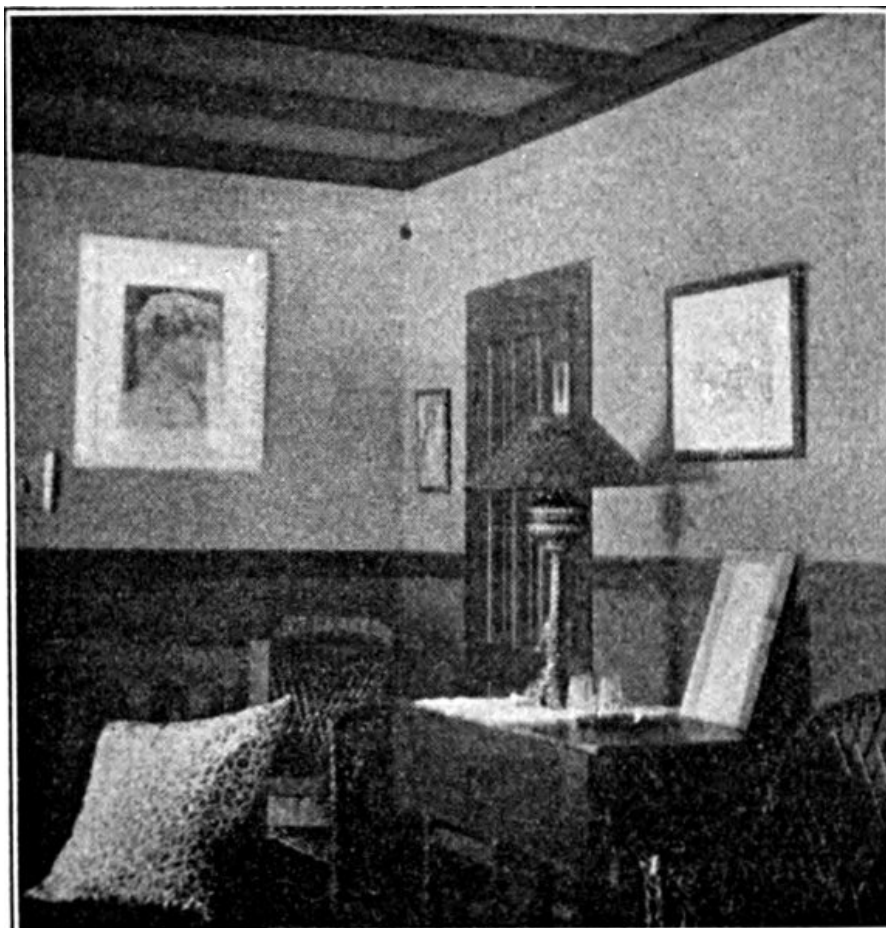
expenses of the summer school, extra service, etc., amount to about \$2,500 yearly. The income derived from patients in the infirmary, transients boarding in the house, and out-patients' fees, exchange dues, etc., amount to about \$700 a year.

I suppose in different localities expenses of such an enterprise as the Neighborhood House would be dealt with in a variety of ways. In our valley a number of men and women bought the property and made the fundamental improvements. An association was then formed comprising as many of the citizens of the valley as cared to join. The annual dues for each associate member were fixed at one dollar. To this association the owners of the property leased the house and grounds for a period of several years. The duties of the association were to pay the taxes and maintain the property in good condition, and their privileges were to use the property for the benefit of the members of the association and, as they saw fit, for the general good of the community.

There were three kinds of memberships in the association:

Active members	\$ 1
Contributing members	10
Sustaining members	50

Through this means the annual income of the Neighborhood House Association amounts to about \$1,800, irrespective of the income derived from the fees, etc., mentioned above. Without any great strain on any one's purse, therefore, the house has been maintained by the association without a deficit.



A HOMELIKE CORNER



LOOKING INTO THE SCHOOL ROOM

Towards the equipment of the house gifts were received to the amount of \$2,635.82. But besides these gifts of money, the village people themselves donated both labor and building materials and furniture and rugs. The summer kitchen, so far as labor was concerned, was the gift of the village carpenters. The infirmary was furnished principally by the women and the girls of the village who raised the money among themselves. The farmers of the neighborhood donated wood, potatoes, apples, etc., to the store closet. One man donated his weekly Sunday paper, another the vines for the porches. One New York physician, whose child had profited by the care of the visiting nurse, gave the sleeping porch, three or four of the other physicians who had summer cottages gave the surgical instruments for the operating room, the children of the village brought plants for the garden, one old lady knitted washcloths for the bath-room, the village house painter helped hang all the pictures and the bracket-lamps, and the village artist helped raise the money for the emergency closet by painting the scenery for the benefit play. There was really a chance for every one to give to that house, and with but few exceptions, every one did give, not only willingly and generously, but eagerly and joyfully.

And because each in his or her way had had a share in making that house a Neighborhood House, the valley people, natives and cottagers alike, promptly and without any self-consciousness turned heartily in and used the house. It had never occurred to most of us that the village had needed such a house, indeed the woman whose beautiful thought it was, had died a year before the Neighborhood House Association was so much as spoken of; but once it stood there, warm and glowing with its happy life that winter night of its opening, there was no question as to its usefulness all day long, summer and winter, in most of our minds.

During the past year the visiting nurse has been occupied in and out of the House over 2,600 hours and has treated fifty-four cases; the infirmary has had seven patients with 160 hospital days; from the emergency cupboard 300 loans have been made. The Women's Club has eighty-two members and has met weekly for lectures and socials. The Girls' Club with twenty-seven members has met once and sometimes twice weekly. The Glee Club has held many rehearsals and gave a concert in May. The sales from the exchange, open only in the summer, in two years have amounted to about \$900.00. The Village Improvement Committee has held two farmers' institutes, has made progress in securing good side walks, has planned for improved roads and tree planting, and has arranged for a prize essay and oratorical contest by pupils of the public school. During the past year there were about 5400 visits to the house; the largest number of visits in one month was 1064 in December.

The question may well be asked, however: Who guides these clubs and classes, who arranges for these parties, who welcomes these guests, who sees to it that the house is clean and orderly, that the meals are properly served, that the patients are well looked after, that the stewardess is up to her work? Who is the hostess, and who, at the close of the house's festivities, speeds the parting guest? It would have to be a woman of tact and gentle blood, for the village people would not brook so much power lodged in any one who was less or even quite one of themselves. It would have to be a person who lived in the valley both winter and summer and who thus understood the conditions of both the summer and winter life. It would also require one who understood the care of an infirmary, as well as the care of the house, who could devise sick room diet, as well as substantial meals for transient guests. Fortunately for our Neighborhood House we found such a woman in our visiting nurse and after some experimenting on other lines, she was made the head of the house. She is a social worker when she is not required in the infirmary or for out-patients, and when these last demand all or more than all of one nurse's time, an emergency nurse is procured who works under the head of the house.

The fact that this head is a nurse has made our social worker the confidant of many families to which another outsider would find but a coolly polite welcome. The fact that she is a social worker makes her interest in her cases widen to their families and remain after her professional duties are no longer needed. Being the head of the house, she can dictate as to the time of meals and the activities of the house for the good of the infirmary patients, yet being the social worker, the interest of the clubs and classes in the house are not needlessly sacrificed to the whims of her patients. Her training as a nurse and her experience has made her more executive than the ordinary young social worker, but her authority as head of a house of so many interests and as executive for so active and powerful an association, gives her prestige, and with that prestige a power for self-development which utilizes the best qualities she possesses. Moreover, in a country district such as our valley, where sickness is the exception, a nurse who was confined to her profession would have much idle time on her hands, and a social worker who was solely a social worker might be discouraged as to the slowness of the growth of her ideals in the minds of those about her. For where people live twenty-five miles from the railroad, tomorrow is always as good as today for beginning a new work. The women are, to say the least, conservative, and the girls are shy about

showing enthusiasm for a new idea. The audiences for lectures arrive with sublime dilatoriness, and the boys stay outside until they are quite sure that what is going on inside is a roaring success.

Of course, the head of the house has a comprehending executive committee behind her. Of course, too, each department of the Neighborhood House, infirmary, summer school, exchange, clubs, etc., has its own committee and chairman. Her responsibilities, also, are only those of a trusted agent and all her reports are filed for the benefit of the Association, so that while each department depends practically upon her, she in her turn depends upon each committee and upon the executive committee and above all upon the able president of that committee for her inspiration and encouragement in carrying out her share of the usefulness of the house. All these good things did not come the first night the house was open. They are fruits of a happy growth. There have been many minor difficulties and prejudices and some evils to overcome. The prejudices died easiest, one of them, the fear that Neighborhood House provided for needs that did not exist, went most quickly of all.

Last summer when an army officer from West Point lay convalescing in one room, sharing his nurse with a little blind pauper baby, there was no doubt as to the need of an infirmary for rich and poor. When the exchange, which sold impartially the rag rug made by a guide's wife, the oil painting of an artist, and the home-made candy of a school child, and turned in \$500 profits to its members, there was no doubt as to the democratic practicability of the exchange. When the women came from the Adirondack Club, and from the summer cottages to debate with the women of the village on domestic science, there was no question as to the success of the Woman's Club. And when the women of the church sewing society came to count their gains from the country supper, and the village Glee Club met to rehearse for its great concert, and the boys invited the girls to their birthday suppers and the girls invited the boys to their dancing classes, and the young married people of the village invited last year's debutantes of far away cities to teach them new figures and steps, and the clergymen who supplied the village church and the lecturers sent by the government to answer the farmers' questions about agriculture, all shared the hospitality of the house, there remained no doubt in any one's mind as to its great usefulness to the entire community.

As to whether it has made neighbors of us all in the spiritual sense—as loving one another as we love ourselves—that has not become noticeable to a degree which has affected the price of eggs! And yet I noticed with a pleasant thrill at my heart last summer that when a woman, quite two miles away from my cottage, came down from her porch with a loaf of bread which she insisted upon my taking as a gift from her baking because she knew the bakery was shut and that I was in a sudden stress, she called me: "Neighbor!" "For goodness' sake!" said she. "Don't you dare to pay me. You'd do the same for me, I just guess! Aren't we neighbors?"

Yes, surely we are neighbors—we city folk and country folk! But it took the Neighborhood House to teach us as a community the beginnings of the art of neighborliness.



THE NEIGHBORHOOD HOUSE IN WINTER

A NEW MINISTER TO MINDS DISEASED

MICHAEL M. DAVIS, Jr.

DIRECTOR BOSTON DISPENSARY

AND

MABEL R. WILSON

SOCIAL WORKER, MENTAL CLINIC, BOSTON DISPENSARY

Early last June Mrs. R., a rosy-cheeked, attractive Irish-American woman of thirty years, came to the mental clinic of the Boston Dispensary in a depressed and emotional condition. She was obsessed by the idea that every one in the world had syphilis, and that she in particular was a menace to her husband and their three young children. So firm was this conviction that she had seriously contemplated suicide.

Four years previously Mrs. R. had shown distinct manifestations of syphilis, and had received medical treatment. The infection the physicians believed was accidental, and the husband and children had proved, upon examination, to be free from any symptoms. For over a year in Mrs. R.'s case Wassermann tests had indicated that the disease had been cured; but the doctor's assurances were of no avail.

The blackness of this patient's depression had almost wrecked her home. For months she had not prepared a single meal. The patience of her relatives and friends and of the priest of her church—who considered her what she looked, the picture of health—was entirely exhausted.

Ordinarily the income of the family was sufficient for self-support. Mr. R., a bright, clean-looking young bar-tender, who was well thought of by his employers, earned \$18 a week. He had been making a desperate effort to meet the extra expenses due to his wife's illness. The strain was beginning to tell upon him, however, and the health of the children was also falling below normal. The family lived in a five-room tenement in a congested and undesirable neighborhood. Mrs. R. for this reason worried constantly about the possible bad influences upon her two elder children, who were just beginning to go to school.

Thus the mental clinic faced an acute situation. If it were not effectively dealt with it would, at worst, terminate in suicide, and, at best, in breaking up a promising family.

The facts just recited were, of course, not secured at the physician's first interview with Mrs. R., but were in part gained by the social worker in the clinic and at the home. It was apparent that the home situation must be considered as well as the medical problem. There was clearly a joint task for the social worker and the mental specialist. Consultation led to the conclusion that the home arrangements would have to be changed until Mrs. R. was able to undertake housekeeping again. A long month of explanation and persuasion passed before the family, friends, and priest were converted to a plan which involved the temporary dissolution of the home. Consent was finally obtained, and the children were placed by a children's agency. Probably most important of all, the earnest co-operation of the patient herself was won. For four months she reported at the clinic two or three times a week. After the many interviews held with her by doctor and social worker, her depression gradually cleared up, and she became ready to take up the battle of life again.

As improvement grew more marked, the doctor advised that she should work three hours each day outside her home. Three hours' work every day in a good restaurant was secured. The benefit was so marked that after a month the doctor suggested that the working time be doubled.

Mrs. R. now reports weekly to the clinic, but her depression has disappeared. She is cheerful, interested in life, and is looking forward to the re-establishment of her home this spring.

Recent conferences on mental hygiene have emphasized the fact that the traditional conception of mental disease, raving insanity, is far behind the times. We recognize today that there are in the community all classes of mental disorders, from the maniac or imbecile to persons who are "just a little queer," or who, like Mrs. R., have a definite and curable obsession.

The time has also gone by when we associated the treatment of mental disease with the straight-jacket. The hopelessly defective and insane must indeed be segregated in institutions. But it is public economy to diagnose and treat the great mass of incipient and curable cases of mental disorder, since these, if uncared for, mean the wrecking of lives, the breaking up of families, and material loss to the community. The psychopathic clinic, or clinic for mental diseases, is an agency the importance of which is now recognized by all who have given attention to this field. Such clinics have usually been conducted in hospitals or institutions which specialized in mental disorders. They have rarely been managed as adjuncts of general hospitals or dispensaries. There is a distinct place for them in this connection, however, for in this way they catch patients who do not know that their troubles are really symptoms of mental disease.

Mrs. R.'s case illustrates not only the service of such a mental clinic, but also the two chief agents in achieving the service, the physician—specialist in mental diseases—and his aide, the social worker. Mrs. R.'s case belongs to one of three classes of mental disease which such a clinic can benefit—the incipient type. The second class comprises cases of mental defect which require diagnosis and institutional care.

For example. Mrs. B., a middle-aged Irish woman, came to the clinic much excited, fancying that people were locking her into her rooms. Among other delusions she feared that she might injure her two children.

The doctor diagnosed her case as involuntional insanity, and thought that immediate arrangements were desirable for her entrance into an insane hospital as a voluntary patient. Mrs. B. did not remember her street number, and undoubtedly she would have been a "lost" patient if the social worker had not taken her home. Arrangements were made and carried out for a transfer to the insane hospital that same afternoon, and a children's agency agreed to assume supervision of the children during Mrs. B.'s absence. The help of a friendly landlady was also enlisted.

Within three months Mrs. B. was discharged from the insane hospital in excellent condition, with the understanding that she should report regularly at the clinic. Her improvement continues. She is at present earning good wages as a housekeeper and looks forward in the future to a little store and the re-establishment of a home for her children.

Another illustration of this type is Mr. D., a German forty-eight years old, who has been in the United States twenty years.

Mr. D. became known at the dispensary through his wife, who had been a patient. The man went on periodic "sprees" at this time, apparently because his work as an order clerk had occasioned considerable nervous strain. Temporary financial assistance and a new job outside of Boston, seemed to put the man on his feet again; and, with a happier home life, his wife's health improved.

In a short time, however, distinct symptoms of mental disorder began to manifest themselves. Mr. D. talked much to himself, and was haunted by doubt in everything that he did. If he put on his hat he was forced to step in front of the mirror several times to be sure that the hat was really on his head. After completing a piece of work, he returned many times to make sure that it was really done. Occasionally he remained at home in bed, because his fellow workmen, noting his peculiar actions, had laughed at him. Upon this basis a fear of meeting people grew up, and he shunned every one. Once or twice he approached his wife threateningly. The superintendent feared to keep him at the factory any longer, and discharged him. After a careful medical examination, the prognosis for the patient was not very favorable. A possible outcome was an active and incurable form of insanity. It seemed necessary, in order to have a reasonable hope of cure, that a radical change of life be made.

Therefore, Mr. D. was induced to go as a volunteer patient to a hospital for the insane. There he remained six months, during which time, with the assistance of the Associated Charities, suitable quarters and light work were found for his wife. Mr. D. was allowed to visit her weekly, until she became ill with an attack of Bright's disease, which, complicated by cardiac symptoms, occasioned her death. This loss retarded Mr. D's. recovery; but, at the end of six months the hospital considered him sufficiently improved to be discharged to the dispensary for continued observation.

At present, six months after his discharge, the situation is very encouraging. Mr. D. is working most satisfactorily as a porter for a large department store. He has secured an excellent room with some old friends, has given up drinking, and, from his twelve dollars a week, is paying back the advances made by the Associated Charities. His "insanity of doubt" seems to have vanished, and his outlook upon life is once more interested and hopeful.

Still another case is that of R., a boy of eleven years. He was born in Russia, of Russian Jewish parentage and has been in the United States six years:—

R.'s own story of his first visit to the mental clinic, was in a manic condition and talked incoherently. A week before his appearance at the dispensary the child had returned from school in a much disturbed state. Since that day he had not been able to sleep, and had manifested great nervous depression with hallucinations and had attempted several times to jump from the window.

R.'s own story to the physician was broken and confused. He talked much of having been forced by his teacher to go down on his knees, and insisted that his hair was on fire. He appeared a sensitive and intelligent child.

Investigation revealed no history of mental disease throughout the families of both father and mother. A home visit by the social worker showed that the family of seven lived in a four room tenement in a congested and noisy Jewish section. The father was a tailor with an irregular income.

The boy was immediately sent to the psychopathic ward of the Boston State Hospital, where the diagnosis of acute insanity was confirmed and a week later R. was committed to the

Danvers State Hospital. A co-operative connection was established between the social worker and the hospital physicians at Danvers who were in charge of the case. After he had sufficiently recovered, the plan was made that R. was to be placed in the country under the supervision of one of the children's societies for a period of at least six months. Dr. Mitchell, superintendent of the Danvers State Hospital, wrote in approval of this arrangement.

The plan was carried out with most successful results. At the end of six months he was released from the parole of Danvers State Hospital and returned to his home to report once a month to the mental clinic at the dispensary.

The social work in this case was not confined entirely to arrangements for the boy, but extended to the preparation of the family for his return, which involved moving to a less congested neighborhood in a Jewish section of a Boston suburb. It was also necessary to arrange for his attendance in an open air class, win his teacher's interest and co-operation, and educate the father to a realization of the need of discipline, the value of regular hours for eating and sleeping, the desirability that the boy should sleep alone, and the danger of exciting recreations.

R. has now been at his own home for twelve months. A recent entry on the medical record states: "Patient in excellent physical and mental condition."

The third class includes patients who have been discharged from insane hospitals as cured, or as so much improved that they should be able to maintain themselves and take part in family life again.

This work of after-care is extremely important. Many cases of mental disease can be safely discharged from an insane hospital if there is assurance that they will be properly followed up in their homes. Such supervision requires the joint efforts of the physician and the social worker.

Miss C., for instance, a woman of thirty-three years, was sent to the clinic for after-care, by arrangement with the superintendent of the insane hospital to which she had twice been sent for maniac-depressive insanity. Her mother had also been a patient for years in the same hospital. During the first weeks of her treatment at the clinic, she was still nervous, complained of gnawing sensations in the back of her head, and dreaded to ride in the street cars. When sitting, she constantly pulled and twitched different parts of her clothing, beat upon the floor with one foot, and kept one hand on her head, using the other one alone. She lived with a married sister who was in comfortable circumstances, and worked for her brother in an unprofitable little plumber's shop, which he apparently kept mainly to afford employment for Miss C. and a younger brother.

With this history it was plain that careful oversight and regular clinical visits were necessary to prevent future attacks. Advice and encouragement were given with the object of stimulating Miss C.'s normal interests and of persuading her to return to wholesome companionship. During the summer of 1912 it was decided to remove Miss C. entirely from home associations, and a desirable position as housekeeper was secured in the country. There she gained in weight and spirits, and acquired valuable experience. She still comes regularly to the clinic, and the medical and social prognosis seems favorable.

The value of organized social service in connection with the clinic for mental diseases has been strikingly shown since its recent establishment at the Boston Dispensary. In the department for mental diseases in this institution, which is a large and long-established dispensary taking all classes of diseases, a trained social worker was set at work in January, 1912. At the expiration of a year an efficiency test was made, comparing the clinic during 1911, when the medical staff had no

social worker to assist them, with 1912, when she was at their service. The following table summarizes this test:

	1911	1912	Increase Per Cent
New Patients	125	213	70
Old Patients	no record	100	—
Visits by New Patients	388	909	134
Visits by All Patients	516	1568	203
Cured or Substantially Improved	19%	22%	16
Cases Pending at End of Year ^[8]	2%	22%	1000
Transferred to Other Agencies	16%	49%	206
Patients Lost	27%	5.6%	90 ^[9]
Relative Efficiency	43%	94%	118

^[8] The increase of "cases pending" is due to the organized medical and social follow-up work, whereby the patients are held at the clinic until the physician feels that they may safely be discharged. Without this service the cases do not "pend" because they are lost.

^[9] Decrease.

The gist of these statistics is that, with the aid of a trained social worker, it is possible to treat certain forms of mental disease effectively in an out-patient clinic. The physician becomes able to keep a grip upon all patients that he wants to hold. There is practically a closed circle, and the results of treatment bear favorable comparison with private work. It is not too much to say that such a clinic, provided with a staff of interested mental specialists and with trained social workers, can perform an important function in treating mental disease and preventing its spread in the community.^[10]

^[10] The preventive work of the clinic takes place in two ways: first, by diagnosing cases of mental defect that ought to have institutional care, and in securing this care for them by placing them or inducing their families to consent to place them in the proper Institution; second, by the education of patients and their families in habits of life and principles of mental hygiene which establish a home environment favorable to the preservation of mental health.

The social worker at the Boston Dispensary works actually in the clinic. Here she meets each new patient and takes a careful social history, usually before the patient sees the physician. Often she is present when the doctor interviews the patient, and always, after this interview, the physician consults with the social worker. Then a plan of treatment is made which includes the social as well as the medical factors of the case. In a certain proportion of cases, home visits are not necessary. The efforts of the social worker in the clinic itself are sufficient to secure adequate treatment. Thus there appears a very important classification of the kinds of social work required:

1. Patients presenting acute family problems of poverty, ignorance, or undesirable home conditions and associations. These patients require home visits and intensive social work. In the mental clinic of the dispensary they constituted 48 per cent of the 141 patients.
2. Patients requiring a home visit simply for the purpose of insuring the patient's return to the clinic—that is, cases in which there were no complex home problems but in which it was necessary to go to the home once in order to persuade the patient to come back for treatment. This class at the Dispensary constituted 20 per cent.

3. Patients to whom it was possible to give effective treatment by clinical interviews only, without home visits. This class constituted 32 per cent.

Inasmuch as the cost of the service per patient (estimating the time taken by the social worker) is enormously greater in class one than it is in class three, it is highly important to make this classification, and to keep a close watch upon the proportion of the different types, so that the cost of the work as a whole, with reference to its efficiency, can be accurately estimated.

An efficiency study from this standpoint during 1912 leads to the conclusion that the average cost per patient (the complete treatment of a case) in class three is sixty cents; in class two, a dollar; in class one, four dollars. The medical service is given gratuitously by the physician. More extended studies in this and in other mental clinics should be made in order to work out the cost figures more accurately.

There can be no doubt, however, that even if the cost of medical service were added, it is cheaper to treat mental diseases in the early stages, when patients can retain their places in the community, wholly or partly self-supporting, than to let the disease reach a point where permanent damage is done, and the insane hospital is the only resource.

That out-patient clinics should fill an important place in the new nation-wide campaign for mental hygiene, there can be no doubt in the mind of any one who has given attention to the matter. That organized social service is not only a desirable accompaniment of such clinics, but an essential condition of their efficiency, is a demonstrable and measurable fact.

CIVIL WAR IN THE WEST VIRGINIA COAL MINES

HAROLD E. WEST

[The Survey has not had staff or means to send a special representative to the West Virginia coal fields to make an intensive investigation of the conditions in the strike area. That is the sort of social interpretation we shall hope to perform with the growth of the slender resources of the Survey Associates. We have done the next best thing—viz., turned to the most promising newspaper source.]

It has been current gossip among journalists that the press of West Virginia could not be relied upon to tell the truth about the situation in the Kanawha Valley. Of the metropolitan newspapers which up to March had had staff representatives in the field, the accounts of the Baltimore Sun stood out. They did not mince matters in telling of the brutal murder by the strikers of the mine guard Stringer; nor did they hedge in publishing what was done by the Cabin Creek and Paint Creek Colliery Companies. Mr. West was the representative the Sun had sent into the field, and from him The Survey requested an article, only stipulating that it be fair to both sides and tell not only the events of the strike but the conditions back of them.

"The article may seem unduly to favor the miners," wrote the Baltimore Sun man in sending it in. "I went to West Virginia absolutely unprejudiced, with the idea of telling the truth about the situation. I found conditions I did not believe could exist in America, and I am no novice in the newspaper game, having seen some pretty raw things in my time. I told the truth about them, and am afraid I have gotten myself disliked."

The fairness of the article is disputed by Neil Robinson, secretary of the West Virginia Mining Association. His protest is published in the forepart of the magazine.—Ed.]

For nearly a year a state of turmoil amounting in practical effects to a civil war has existed in the coal fields of West Virginia. The situation centers in the Kanawha Valley, hardly more than twenty miles from Charleston, the capital of the state.

The military power of the state has been used with only temporary effect; martial law has been declared and continues in force; the governor of the state has been defied and denounced from the state house steps and within his hearing; men and women have been thrown into prison and are still there for espousing the cause of the miners, and the grim hillsides of the canons in which the mines are situated are dotted with the graves of men who have been arrayed against one another in this conflict between capital and labor.

Of course, there have been errors and excesses on both sides. The men in the mines are not angels by any means, and neither are the men for whose profit they work. But there has been no profit on either side for the last year and it looks as if there would be none for a long time to come. The men of both sides are pretty good fellows away from the mines and the subject of mining; on the matter of mining, they show the obstinacy of men who look at a proposition from but one point of view, who see no justification of the position of those who oppose them and who seem to have lost absolutely the sense of proportion.

If the efforts made by William B. Wilson, former Congressman from Pennsylvania and former secretary-treasurer of the United Mine Workers of America, to have a federal investigation of the situation early in the struggle, had been successful, the whole matter might have been settled long

since. But his resolution calling for a congressional investigation was buried at the last session of Congress and was never resurrected.

Wilson charged that a condition of peonage existed in the mines and that men were held there by force and compelled to work against their will. The coal operators denied this vehemently, at the same time fighting bitterly a federal inquiry. Evidence I was able to gather on a trip of investigation to the mines convinced me that a form of peonage does, or did, exist; that the miners were oppressed; that the rights guaranteed under the constitution were denied them; that the protection of the law of the state was withheld from them and the law openly defied and ignored by the coal operators. These things were done, apparently, not because the operators were cruel, but—the old story of dividends—because they thought it necessary that a balance be shown on the right side of the ledger, and because competitive conditions in the coal fields were such that more of this balance had to be produced from the men themselves than from the bleak hills in which they toil.

The investigation is bound to come. Wilson is a cabinet member in the new administration, and could of his own volition carry it on under the broad terms of the act creating the new federal Department of Labor. But there is another agency which may look into the situation. When fellow members of the lower house balked Congressman Wilson's proposal, he interested Senator Borah of Idaho and the latter promised to introduce into the Senate, at the coming special session, a resolution calling for a full and complete investigation, by a committee of the Senate, of the whole situation in the West Virginia coal mines, including the question of peonage, the use of mine guards and other means of oppression. This would be a Senate resolution, it would not have to be concurred in by the House of Representatives, and it is understood that Secretary Wilson has votes enough pledged to pass it.

Even the close of the strike which has been rumored the past fortnight would not make such a fundamental inquiry during the spring and summer inopportune, but rather a measure of precaution in anticipation of future labor conflicts in the region. The fact that such an inquiry has been actively contemplated is not generally known; information about it has not been published in the newspapers, but has been given me for use in *THE SURVEY*.

Backward View of the Trouble

The Kanawha trouble dates back about ten years. At that time the miners' condition was good, as things go for men in the coal fields, and the miners along Cabin Creek were organized. An ill-advised strike was called then, and it resulted in a disastrous defeat for the miners. This strike was ordered by officials of the union against the desire of the miners directly affected and it is charged by Cabin Creek miners that it was declared in the interest of the Ohio operators who desired to cripple their West Virginia competitors. Some of these operators have since admitted that they helped finance the strike. As long as the trouble lasted, operators in competitive fields could gobble the business of operators whose plants were shut down. Of course, after the men had been beaten and the strike broken and non-union conditions and wage scales went into effect, the competition was more bitter than it had been before, yet the pickings were good while they lasted. That, however, is all ancient history.

Ever since the strike of a decade ago the men on Cabin Creek have been restless. Conditions were burdensome although they were not so bad on Paint Creek which was organized. The operators were out after business and they cut prices on coal to the limit in order to meet the competition of Illinois, Ohio and western Pennsylvania operators and get a share of the "lake trade." For the driving force behind this civil war in the hills of West Virginia is to be found in the coal bins of

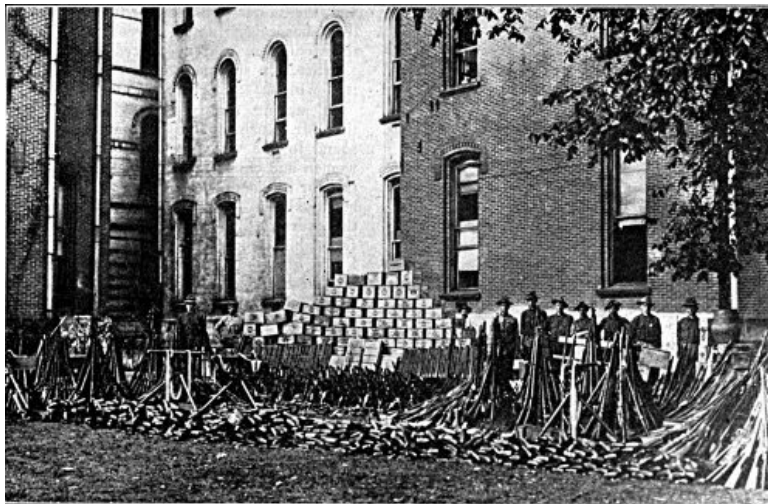
10,000 factories of the Middle West and beyond whose managers and workmen know little or nothing of the struggle.

By "lake trade" is meant the coal that goes to ports on Lake Erie for transportation by steamer and barge to Detroit and as far as Duluth and Superior for distribution throughout the Northwest. All the trade that passes over the lakes, no matter what its ultimate destination, is known as the "lake trade." The Pittsburgh operators have held that the opening of the West Virginia fields was an economic blunder, that the lake demand was no greater than Pittsburgh and Ohio could supply, and that it was a mistake for the West Virginia operators to enter that field. The latter took the position that they had the coal, and did not propose to let it remain undeveloped because it would interfere with the market of the operators of other fields. They would mine their coal and would sell it wherever they could, and if they could grab a big share of the lake trade they proposed to do it. It has been a battle of millions.

To strengthen their position the Pennsylvania operators have bought large blocks of West Virginia coal lands. The Lackawanna Coal Company has, for example, secured control of the principal operations on Paint Creek.

The operators in the Ohio, Illinois, and most of the Pennsylvania fields, get out their coal under terms as to hours and wages imposed by their agreements with the United Mine Workers. In order to be in a position to meet the growing competition of the West Virginia fields on an even footing in the matter of labor, it is an open secret, that they have given aid and comfort to the union in the effort to organize the West Virginia field. They have been fighting on the other hand for a reduction in their own freight rates or an increase in those of their West Virginia competitors, they did not care which, as the consumer finally pays the bill. Until a comparatively recent time, the rate from the Pittsburgh district to Ashtabula and Cleveland has been 88 cents a ton, while to Toledo and Sandusky, the rates from the West Virginia field have been 97 cents and \$1.12 a ton.

Something more than a year ago the pressure on the railroads became so great that a meeting of the officers of the coal carrying roads and the operators from the Pittsburgh and the West Virginia districts was held in New York in an effort to settle the difficulty. No agreement could be reached and the roads, unable to resist the pressure of the Pittsburgh operators advanced the rate from the West Virginia fields 9-1/4 cents, making the differential in favor of the Pittsburgh field 18-1/4 instead of 9 cents.



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CONFISCATED ARMS AND AMMUNITION

The revolvers and rifles were taken from both mine guards and strikers

The West Virginia operators appealed to the Interstate Commerce Commission for an investigation, and an order suspending the rate was granted. Then John W. Boilleau, a big operator in Pennsylvania, demanded a reduction of 50 or 55 cents a ton from the Pittsburgh district, further complicating the situation. Early last year, the Interstate Commerce Commission handed down a decision reducing the rate from the Pittsburgh district 10 cents and held that the Chesapeake and Ohio and the Kanawha and Michigan rates should remain as they had been but that the Norfolk and Western rate might be increased. This decision resulted in increasing the differential in favor of Pittsburgh to 19 cents.

With this handicap in freight rates, the operators on Paint and Cabin creeks say that it is impossible for them to pay the union scale and submit to union conditions and keep going. It is a fact that although the average price of coal in West Virginia for 1911 was a cent above the price in 1910, many coal companies failed. Some mines have been operated by receivers while others have been closed down on the ground that coal cannot be produced at the mouth of the mines and put on the cars at the price it brings in the market. Others are just about coming out even while some are making money.

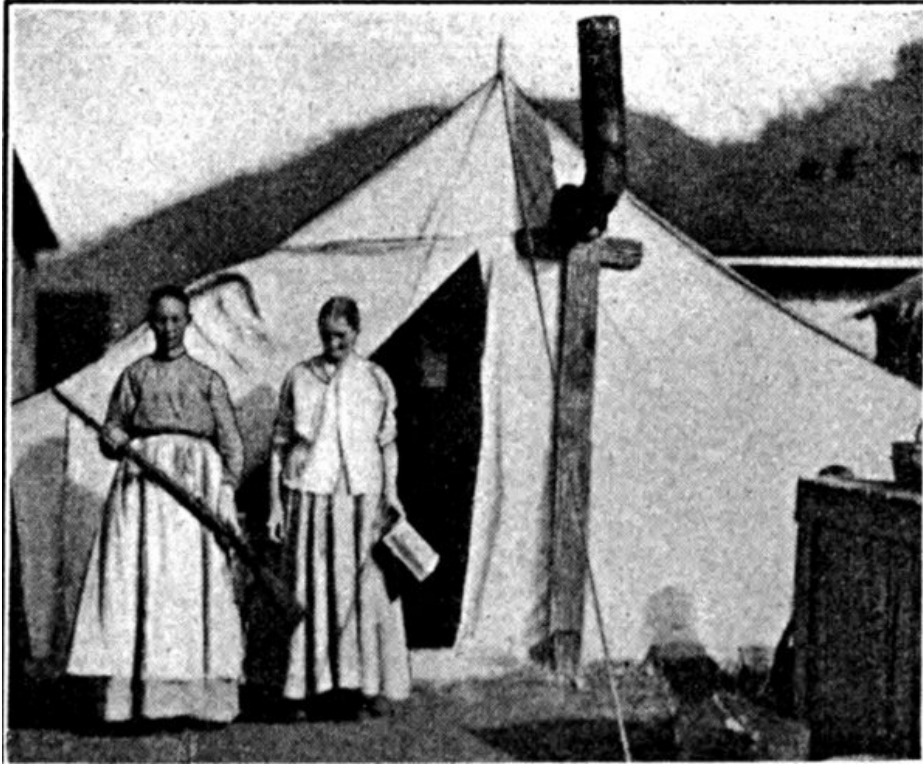
Profits from Mine or Men?

The strikers answer by charging that the losses and difficulties incident to competition are many of them paper losses and paper difficulties, that the mines would pay well under union conditions and rates of pay if the mines were not working on an inflated capitalization and were not endeavoring to earn money on a lot of watered stock.

In one of the talks which I had with Neil Robinson, secretary of the West Virginia Mining Association, he went into the cost of production and told of the efforts of the Pittsburgh operators to shut the West Virginia coals out of the lake trade. He produced the calculations of G. W. Schleuderberg, general manager of the Pittsburgh Coal Company, which were given in the lake rate cases before the Interstate Commerce Commission, showing that the average cost of production in 52 mines, including general office expenses, depreciation, royalty, fuel, supplies, and labor, was 99.09 cents per ton of coal on cars.

As against this, he showed a generalized statement, which he said was based on actual working conditions in the Kanawha splint coal mines indicating a cost of 99.11 cents on cars, a difference of two hundredths of a cent in favor of the Pittsburgh operators.

The Schleuderberg figures showed a total labor cost of 72.16 cents a ton while Mr. Robinson's figures showed for the Kanawha fields a labor cost of 65.66 cents a ton, a difference in favor of the Kanawha fields of 6.5 cents, and if superintendence and certain other costs be included, a cost of 63.78 cents, which is a per ton difference in favor of the Kanawha fields of 3.38 cents. This would more than cover the increase asked by the miners which is half of the Cleveland compromise scale or approximately 2-1/2 cents a ton.



Courtesy of the Coal Age

ON GUARD

A Cabin Creek rifle-woman before her tent.

Of course, there is the railroad differential in favor of Pittsburgh to be considered. In spite of the differential of 9 cents against the West Virginia field, which existed up to the time of the settlement of the lake trade cases by the Interstate Commerce Commission, the West Virginia operators shipped in 1910 to lake ports more than six million tons of coal, a growth of over four million tons since 1906; or 125 per cent and even with the differential spread to 19 cents, they are shipping coal as rapidly as they can mine it.

The explanation of the Kanawa Valley miners is that in their efforts to capture the Lake Trade the West Virginia operators in competing with the Pittsburgh district operators have been selling coal at less than cost and making their profits out of their men.

The miners told me that ever since the fight began their condition has been becoming harder and harder to bear. One of the men, answering my statement that the operators said they were barely meeting expenses said: "Damn it, I know there is no money in coal at 80 cents at the tipple; any fool knows that, but by God, they've got no right to take it out of us."

And that in my judgment is about the truth of the situation. Or, as Neil Robinson explained to me in all seriousness: "Labor is simply a pawn in the game."

Yet the game has cost the state, the operators and the miners millions of dollars and many lives, has caused untold hardship to women and their children, has engendered a bitterness that a generation in time will not heal and hatreds that will last a lifetime.

In making that statement, I am convinced that Mr. Robinson did not know how it would sound to one who puts the well-being of men, women and children above the necessity of capital for dividends. He was simply stating a business fact. I had several talks with him in the course of my

stay in the mine region and found him a cultivated, courteous man. I think I got his point of view which coincides with that of the operators generally. They seem to look upon labor as material, to be bought as cheaply as possible and to be utilized in the manner which will be most profitable to the mine investments.

Whenever I went in to see him to discuss the situation he immediately produced account books, and books of statistics and began giving me figures. The whole case of the operators, he seemed to think, could be shown by the books and the balance sheet. He told me of tonnage, cost of production, railroad freight rates, yield on investment, the yield of competitive fields and the cost of operation in those fields, capitalization and rates of dividends. But of the human side, he had substantially nothing to say. Of the outrages of the miners—and they have been numerous—he spoke with bitterness, but of the outrages committed upon them he was silent.

Of course, figures such as Mr. Robinson produced are important but they are not everything. The trouble is that the operators do not seem to be able to see beyond them into those desolate little cabins under the everlasting hills, to the rights of men, to the causes that make for anarchy—that have made for anarchy, in this very region.

The State at Stake

It is hard to tell just how many men have been out in recent months. Five thousand would be a fair estimate. And remarkable as it is, these men have been able to hold out through a winter—and winters are severe in those West Virginia mountains—and they enter the spring and the long season, when cold does not fight them from the ranks of their opponents, full of cheer and determined to continue the industrial war in which they have engaged.

It must be remembered that this fight is not simply one between miners and operators on Paint and Cabin Creeks. It is localized there, but every miner and every operator in the state is involved more or less directly. It is really a fight for the unionizing of the entire coal fields of West Virginia, now largely non union.

If the operators stamp out the effort to restore unionism on Paint and Cabin Creeks and prevent its going further than it has already gone on Coal River it will mean the checkmating of unionism in the coal fields of the state. Fights will be made, one after another, in places where the United Mine Workers have organizations and they will be broken up as they were broken up on Cabin Creek ten years ago. Once broken, they will not be permitted to be formed again.

If, on the other hand, the miners win, their organization will be pushed first into one field, then into another, until the whole state shall have been unionized. It will take them years to do this. This explains the extreme bitterness of the present fight, each side practically staking its all on this one throw. Of course, the operators do not admit that they are battling to crush out unionism in the state and the officials of the mine workers' organization do not talk much about extending the fight to other fields if they win in this. That is their purpose, nevertheless.

The miners are receiving assistance from other operators in non-union parts of the state. All the resources of the United Mine Workers of America are being thrown behind the miners. As explained to me by perhaps the most prominent man in the organization a few days ago, there is now no big fight on hand anywhere else in the country, and there has been none for a year. This has enabled the mine workers to collect a big fund and they are still collecting. The organization's war chest is kept in good shape by contributions from every mining district in the nation and all this will be poured into the Kanawha field if necessary. In addition to this, the miners again have the sympathy, if not the active co-operation, of the operators in the Pennsylvania, Illinois and Ohio fields where the union scale is paid.

In fact, the operators in the fields which are organized look upon their brothers who have been able to prevent the union getting a hold in their operations very much as the union laborer looks upon the non-union laborer, although the operator is not so frank in expressing his opinion. He is perfectly willing to upset the labor conditions in his competitors' operations and aid the laborers in making their fights. And the operator in the unorganized field is perfectly willing to see his competitors' fields organized to the limit.

The country in which this war between the miners and the coal companies is taking place is as wild as any that lies out of doors. Cabin Creek Junction is sixteen miles east of Charleston and Paint Creek Junction is seven miles further east. On Cabin Creek the railroad runs south along the bed of the creek sixteen miles to Kayford while on Paint Creek the road extends for twenty-two miles. These creeks are little streams, ordinarily, which sometimes reach the proportions of torrents, flowing along the bases of the mountains. The elevation of the creek beds above tide ranges from 800 to 1,000 feet, while the tops of the hills which rise abruptly on both sides of each creek are from 1,000 to 1,500 feet higher. The sides of these hills are so steep that only an experienced mountaineer can climb them, yet here and there near the creek beds the miners have raised little patches of corn and vegetables.



MOTHER JONES

The workable veins of coal lie high up on the sides of these hills, and from each mine mouth a track leads to the coal tipple below from which the coal is dumped from the mine cars to the cars of the railroad which runs beneath the tipple. Here and there at the base of either of these ravines is a narrow strip of flat land, and on these flats, the mining villages are located. At places the bottom of the ravine is so narrow that there is not room for the railroad track, the creek bed and the county road, so the road runs along the bed of the creek and is impassable at times of high water and oftentimes in the winter.

It is estimated that before the strike began, there were approximately 10,000 men, women and children living along Cabin Creek and somewhat more than half that number along Paint Creek. A train runs up each creek in the morning and there is another in the afternoon and if you happen to

miss the afternoon train out there is no way out except to walk, and walking is very difficult in that country.



MINERS' HOMES LEASED FROM MINE OWNERS

Courtesy of the New York Sun

For that reason little real news of the exact condition of affairs has reached the outside world. Newspaper men are decidedly unwelcome along the creeks; that is, their presence is distasteful to the mine owners. Few strangers had been allowed to enter the creeks for a long time prior to the entry of the militia last summer, without explaining their business to some man, and usually a man with a gun. Ordinarily a stranger would not get beyond the junction of the main line and the branch road. If the explanation of his business did not happen to be satisfactory, he was told to get out. If he demurred or showed a disposition to argue he was frequently beaten up. If he got up the line, his chances of getting beaten up were largely increased. One labor organizer told me that a couple of years ago he was pulled off a train and kicked into insensibility by the mine guards and when he recovered was made to "walk the creek" in water up to his waist because he had gone up Cabin Creek to see what the labor conditions were.

The Mine Guards

These mine guards are an institution all along the creeks in the non-union sections of the state. They are as a rule supplied by the Baldwin-Felts Detective Agency of Roanoke and Bluefield. It is said the total number in the mining regions of West Virginia reaches well up to 2,500. Ordinarily they are recruited from the country towns of Virginia and West Virginia, preferably the towns in the hill country, and frequently have been the "bad men" of the towns from which they came. And these towns have produced some pretty hard characters. The ruffian of the West Virginia town would not take off his hat to the desperado of the wildest town of the wildest west.

These Baldwin guards who are engaged by the mining companies to do their "rough work" take the place of the Pinkertons who formerly were used for such work by the coal companies. Since the Homestead strike in the steel mills years ago when the Pinkertons fired into the strikers and killed a number of them, this class of business has gradually drifted away from the Pinkertons and much of it has been acquired by the Baldwin-Felts agency.

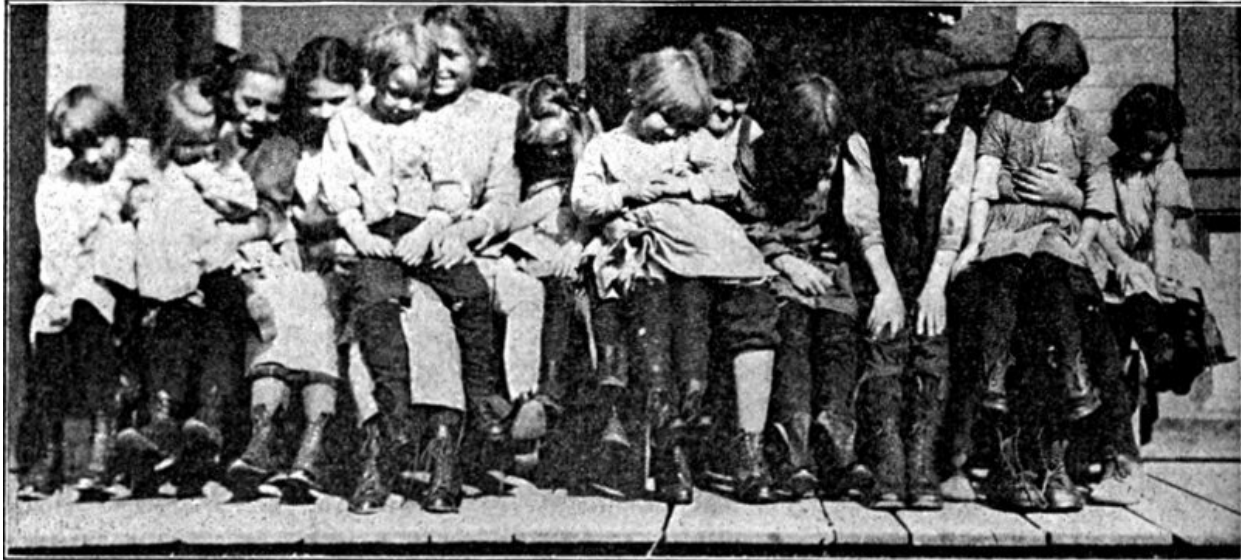
In explanation of the employment of these guards, the operators say that their property must be guarded, that the state does not give them sufficient protection. Men who do service as mine guards cannot be expected to be "ladylike." They deal with desperate characters and are constantly in peril. The guards act on the principle that they must strike first if they are to strike at all, and evidence shows that they have not the slightest hesitancy about striking first. The operators also say that it is necessary to require explanations of strangers in order to keep out labor agitators and to prevent the miners from being annoyed and threatened by them.

No class of men on earth are more cordially hated by the miners than these same mine guards who are engaged to "protect" them from annoyance by outsiders. Before the state troops went into the region and took their rifles away from them, the mine guards went about everywhere, gun in hand, searching trains, halting strangers, ejecting undesirables, turning miners out of their houses and doing whatever "rough work" the companies felt they needed to have done. Stories of their brutality are told on every hand along the creeks. Some are unquestionably exaggerated, but the truth of many can be proved and has been proved.

In spite of the work they do some of these Baldwin men seem to be decent enough chaps to those who are not "undesirable," and they are, for the most part, intelligent. But they are in the mines for a definite purpose. They understand what that purpose is and they have no hesitancy about "delivering the goods." They seem to have no illusions about their work. It pays well and if brutality is required, why, brutality "goes." Whenever possible they are clothed with some semblance of the authority of the law, either by being sworn in as railroad detectives, as constables or deputy sheriffs.

But for all that a number have been indicted for offenses ranging from common assault to murder. In every case, however, bail has been ready and it is rare that charges against them have been brought to trial. Some of the assault cases in which they have figured have been of great brutality, yet rarely has any serious trouble resulted for the guards. They go about their work in a purely impersonal way. If a worker becomes too inquisitive, if he shows too much independence, or complains too much about his condition, he is beaten up some night as he passes under a coal tippie, but the man who does the beating has no feeling against him personally; it is simply a matter of business to him.

Just what the services of the guards cost the coal companies is difficult to learn. The companies contract with the Baldwin-Felts agency for them and the sum they pay is kept a secret. It is generally understood that the guards get about \$5 a day, or between \$100 and \$125 a month. A man in the mines who knows one of them intimately told me he "picked up his gun" for \$105 a month. When a man joins the Baldwins he "picks up his gun," and that stamps him forevermore with his former associates if they were of the laboring class as an enemy and a man who has turned his back on his class and his kind.



Courtesy of the United Mine Workers' Journal
A GROUP OF STRIKERS' CHILDREN

Unless the miners are beaten in this fight, and utterly and completely beaten, there will never be a settlement of the difficulty here until the mine guards are driven from the region. "The mine guards must go," is the slogan of the striking miner everywhere. His going is of more importance than an increase in pay. There will be no lasting peace in the region until they are gone. All over the state when the situation in the Kanawha valley comes up for discussion you are told that the mine guards are at the bottom of the trouble. They are the Ishmaelites of the coal regions for their hands are supposed to be against every miner, and every miner's hand is raised against them. They go about in constant peril—they are paid to face danger and they face it all the time. But they are afraid, for they never know when they may get a charge of buckshot or a bullet from an old Springfield army rifle that will make a hole in a man's body big enough for you to put your fist in. A number of guards have been killed since the trouble began, and it is generally understood that some of these were buried by their fellows and nothing said about it, there being a disposition down in the mines not to let the other side know when either side scores and gets a man.

Beginning of Hostilities

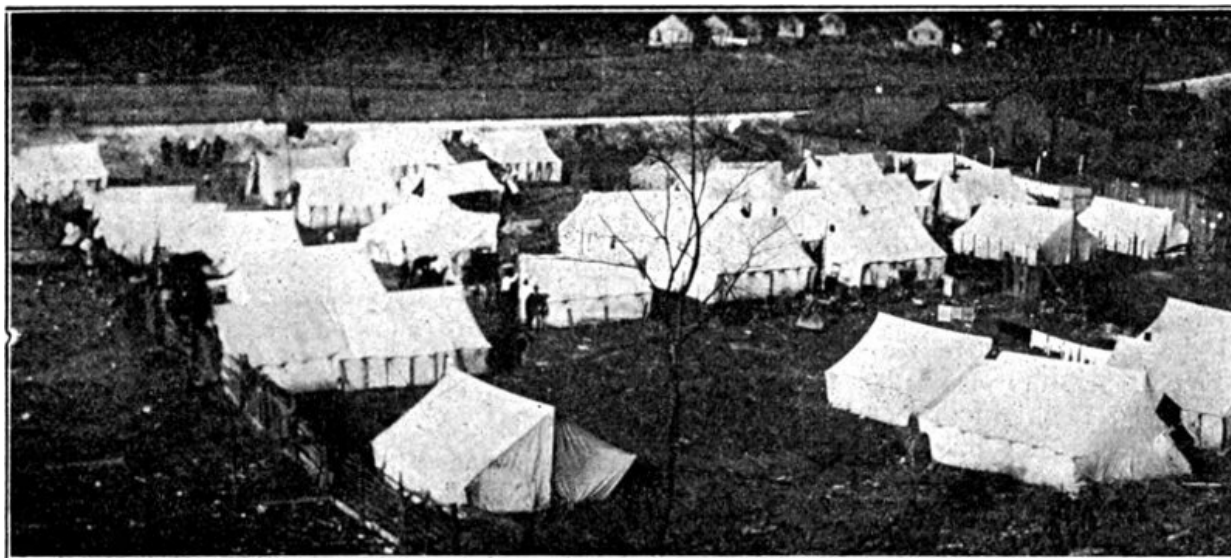
Preparations for the warfare, which began in April of last year, had been going on for months before the actual opening of hostilities. The miners on Paint Creek began buying old Springfield rifles which the government had discarded and which were offered in quantities by junk dealers and department stores in Charleston. There had been rumors of trouble, and the Paint Creek miners who were organized had received intimations that Cabin Creek conditions would be established in their operations. There had been no mine guards on Paint Creek for they are seldom seen in union operations. The miners had received information that the operators would not sign the scale for the new year but would repudiate the union and bring in the guards.

Their information proved correct. When the Kanawha Operators' Association met to consider the scale, the Paint Creek operators declined to sign it and withdrew from the association. The miners struck and the guards appeared over night. A big fight took place at Mucklow when the first blood was spilled in the trouble. It has been spilled in quantities since with more or less regularity.

The companies immediately prepared for a long fight. Miners were evicted from their homes and many of them have since been living in tents furnished by the United Mine Workers. Machine

guns were imported and mounted in concrete fortifications that were hurriedly built on the roofs of the company stores and mounted in positions of vantage in the hills. Whisky, cartridges, rifles and machine gun ammunition were brought in in large quantities.

The strike spread at once to Cabin Creek and from the beginning the warfare has been more serious on Cabin Creek than it has been on Paint Creek. More machine guns were established on Cabin Creek than had been planted in Paint Creek. The situation grew so threatening that Governor Glasscock ordered out the militia early last August at the solicitation of the mine owners. By that time almost every man on Cabin Creek had his rifle and ammunition, hidden but where he could get at it without trouble. For the most part the arms were smuggled in over the hills. The mine owners informed Governor Glasscock that the miners were armed and were threatening to wipe out the mine guards, one of the guards, William Stringer, having been slain in a most brutal manner. The miners did not ask for protection, saying they could protect themselves. It is generally believed that they were waiting for some particularly bad move on the part of the guards, when they proposed to exterminate them if possible. The mine owners expected that when the troops came they would disarm the miners but allow the guards to retain their rifles, in other words, and to put it very plainly, they expected that the militia would be used as an additional force against the miners. But when the troops began disarming the guards as well as the miners they protested most vigorously. But for every rifle taken away from a guard in the early days of the trouble, dozens of new ones were brought in.



Courtesy of the United Mine Workers' Journal
A TENT VILLAGE OF STRIKERS
The deserted town is in the background

Martial Law

Governor Glasscock's attitude pleased neither the operators nor the strikers. The miners at the outset wanted him to proclaim martial law, to search the whole place, run out the guards, take their arms away from them and take the machine guns out of the improvised forts. They received the soldiers with open arms—no set of soldiers ever went into a strike region and received a heartier welcome. In the presence of the troops, the guards had no terrors for the miners, and even the children were unafraid.

When martial law was really proclaimed, however, the strikers did not like it. The law was enforced with vigor and a number of the strikers were put in prison for violating the law against unlawful assemblages. The shoe had begun to pinch and it pinched pretty hard before the soldiers were withdrawn. It was a mistake to take away the troops before the strike had been definitely settled. It would have cost the state a good deal to have retained them after things quieted down, but if a comparatively small force had been kept, it is hardly likely that the recent trouble would have occurred, and it would not have been necessary to send the soldiers back and proclaim martial law a second time. Then many lives would have been saved.

The trouble that followed the withdrawal of the troops could have been, it seems, foreseen by almost any one. One of the miners said when I was in the mines:

"Hell is going to break loose here as soon as the troops are recalled unless the mine guards go out at the same time. They have it in for us and we have it in for them. As soon as the troops go out, we fellows who have been working to unionize this region are going to catch it. But when they start something the fun will begin.

"If you want to see some hot doings just wait around until the troops go. Conditions such as prevail here are a disgrace. The like of them does not prevail in any civilized country on the globe. And we are not going to stand them any longer. I have never had to kill a man and hope never to be compelled to kill one, but I would kill a dozen of these guards as I would kill so many rats if they should attempt to lord it over us as they have been accustomed to do. And I would do it with a perfectly clear conscience."

The man who made this statement was killed in one of the recent fights in the valley. I saw his name in the list of the dead.

One of the things that give the coal operators such complete control of the men who work for them is the ownership of great tracts of land. Everywhere you are confronted with a notice that you are on private property.

Landlordism

Because the West Virginia mining villages are nearly all on private property, the operators owning the highways as well as the houses of the miners, they can control their going and coming and determine who may or may not visit them and talk with them. It is idle to say that the men can come and go as they please, as the operators claim. Each individual among them has the right to go from his home to the mine and back again and to travel on the county road, which is merely an excuse for a highway. But he has not the *right* to go from his own home to that of a fellow workman nor has his wife and children. When they do so, it is by the sufferance of the mine owner, unless they go by the county road and then half the houses cannot be reached. It is idle to say that this power is not exercised by the operators. It is. I have seen it exercised, and this very fact contains a serious menace to the country. I talked it over one day with Governor Glasscock in the early days of the trouble.

"How can it be remedied?" he asked. "The whole situation bristles with problems like this. In this case you are up against a man's constitutional right to control his property as he sees fit and to keep trespassers off it."

Such a situation offers a serious problem in government. Take Cabin Creek alone, with its branches to Kayford and Decota. There are more than twenty square miles of territory in which live ordinarily about 12,000 persons. In all that territory there is scarcely a place in which a man

may go without being under surveillance, and except at the little "free" or incorporated town of Eskdale, hardly a house into which a friend may be invited for a drink of water except by the grace of the coal companies.

The miners say that such a condition is un-American. They want it solved and they do not care how it is to be solved. While this matter is not put in the list of their demands, it is one of their serious grievances. Here are the things they are demanding:

Abolition of the mine guard system.

A reform in the system of docking.

The employment of check-weighmen on the tipples to represent the miners and to be paid by the miners. The law provides for these check-weighmen, but this law is ignored by the coal companies.

Permission for the men to trade where they please without discrimination against them for so doing.

The payment of wages in cash every two weeks and not in script or credit cards.

Improved sanitary conditions, with the requirement that the companies remove garbage and keep the houses in condition.

Payment for mining coal on the basis of the short ton on which the coal is sold and not on the basis of the long ton, on which it is at present mined.

Rentals of houses based on a fair return on their cost with allowance for upkeep and electric lights on the same basis.

The nine hour day—the men now work ten hours.

Recognition of the union. This implies, in the bituminous districts of the middle West, the check-off system by which the companies deduct from the pay envelopes of individual miners not only the charges for powder, rent, medical attention, store accounts, etc., but also for union dues which are turned over to the union treasuries direct. This method of recognizing the union has been most vigorously opposed by the operators in the anthracite district.

An increase in pay. This last the miners regard as the least vital of all their demands as a present issue.

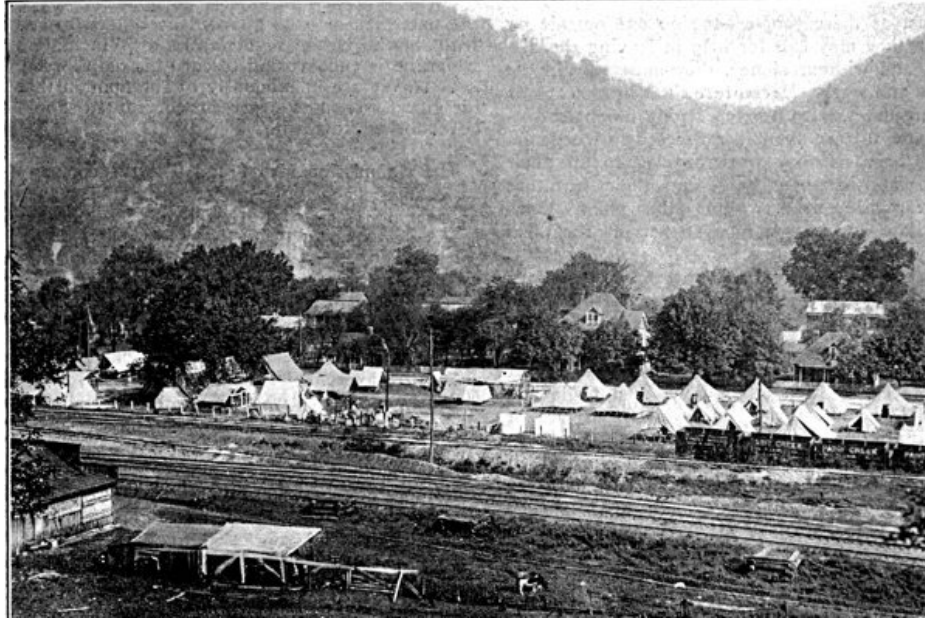
Charges as to Peonage

It has been charged that a condition of peonage exists in some of the mining districts of the state. This is a subject on which the operators are very sensitive. They deny vehemently that such a thing is possible.

Peonage, as it is usually understood, means compelling men to work under duress until debts they may owe are paid. It is a violation of state and federal laws.

Men who come into the mines usually have little or no money. Sometimes their transportation into the mines is paid and they are charged with the cost of it on the books of the companies employing them. They are given a cabin to live in and if they have no money when they start and seem to want to go to work in good faith they are given credit for small amounts at the company stores. Accordingly, unless the miner is an unusually thrifty fellow, he is usually in debt at the start.

Miners have told me that in the Cabin Creek region they are paid only once a month, but when they start in, they are not paid any cash for sixty days, the first month's pay being held back. In the meantime, however, after they have earned sufficient money to pay the rent and other charges in connection with their cabins, their school tax, burial tax of twenty-five cents a month, their assessment for the maintenance of the mine physician, and sometimes an item for "protection" which is an assessment for the pay of the mine guards they will, "on application" be given a "script card" entitling them to purchase from the company store goods to the amount indicated on the card. On the edges of the card are figures and the amounts purchased are punched out very much as the waiters in a quick lunch restaurant punch out the amount of a customers order on his check.



Courtesy of the New York Sun
SOLDIERS IN CAMP AT CABIN CREEK JUNCTION

These script cards will not, it is said, be given to a miner for the total amount which stands to his credit on the books of the mine company, but is usually for \$2 or \$3 if the man has that amount due him after deductions are made for rent in advance and other charges. If a man is very anxious however, to have some cash, a clerk in the store, will, it is said, discount his script card, charging him 25 per cent.

For the first two months, then, the miner, who starts out in debt, has to get everything he needs from the company stores. The prices at these stores are high, much higher than the miner would have to pay elsewhere for exactly the same grade of stuff. For the most part, the grade of goods sold at the company stores is much higher than is usually purchased by laboring men and their wives when they buy where they please. Here are some of the prices I found prevailing at stores along Cabin Creek:

Eggs 35 cents a dozen; "white bacon," pure fat and popularly known as "sow belly" 18 cents a pound; smoked bacon 22 cents a pound; white sugar 20 cents for a two pound bag; lard 15 cents a pound; brown sugar 15 cents a pound; coffee 30 cents a pound; tomatoes 15 cents a can; peas 15 cents a can; corn two cans for 25 cents; cheese 30 cents a pound; bread 5 cents a loaf; flour \$7 a barrel, and salt 5 cents for a two pound bag. Salt is not sold in bulk.

Compelled to buy at high prices, it can be readily seen that a man cannot save much money, although it is a fact that a few of the very thrifty ones have rather respectable bank accounts. So when the average fellow starts out in debt, he usually stays in debt. His work is hard and he eats heartily when he can. Then the miners' wives have never been taught how to make much out of little or to conserve their resources, so there is naturally much waste in cooking, much is spoiled and much is poorly prepared.

All this tends to keep the man in debt. At the end of his two month's work he may have couple of dollars coming to him or he may be still in debt and if he is in his house a day over the first of the month, rent in advance is charged against the first money he earns even though he and his family may be in need of food. Sometimes he does not get any cash for months, and you have to have cash to get out of the mines for the railroads will not permit the miners and their families to travel without paying fare.

Most of these people have no one outside on whom they may call for help in leaving the district, and without money, they must stay in the mines and work. Heretofore their best means of getting out was to develop strong union tendencies and to talk about the necessity of organizing. Then, if they were not beaten up, their fare was sometimes paid, and their furniture and families moved to some other point. Once out, however, it would be unpleasant for them to try to get back.

A point is made by the operators that they have offered to pay the fares of any of their men and of their families, including transportation charges on their household goods, to Charleston or to fields operating under union conditions. It is a fact that such offers have been made and because the miners did not avail themselves of the offer, it is cited against them as unreasonable, and that they did not care so much about bettering their condition as about harassing the operators.

As a matter of fact the men do not care to leave the region. They are engaged in a fight to unionize it and are as anxious to succeed as are the operators to prevent them from doing so. "Stay where you are and unionize your district but do not crowd into organized operations," is the advice given by the union organizers. That is why the unions in the other districts are supporting the strikers and have been doing so for a year.

The Glasscock Commission

Last summer after the mine companies refused point blank to be a party to the appointment of a commission by the governor for the investigation of the situation in the mines, Governor Glasscock appointed one anyway. Bishop Donahue, the Catholic bishop of Wheeling, S. L. Walker, and Fred O. Blue were appointed as commissioners. Extracts from the report of this commission are interesting:

"From the cloud of witnesses and mass of testimony figuring in the hearings, there emerges clearly and unmistakably the fact that these guards [the mine guards referred to heretofore] recklessly and flagrantly violated in respect to the miners on Paint Creek and Cabin Creek, the rights guaranteed by natural justice and the constitution to every citizen howsoever lowly his condition and state.... Many crimes and outrages laid to their charge were found upon careful sifting to have no foundation in fact, but the denial of the right of peaceable assembly and of freedom of speech, many and grievous assaults on unarmed miners show that their main purpose was to overawe the miners and their adherents and, if necessary to beat and cudgel them into submission. We find that the system employed was vicious, strife prompting and un-American. No man, worthy of the name, likes to be guarded by others, armed with black jacks, revolvers and Winchesters whilst he is endeavoring to earn his daily bread.... We

are unanimously of the opinion that the guard system as at present constituted should be abolished forthwith."

The commission also found that the company stores overcharged the miners, that the system of docking was unfair to the miner, and that a system of blacklisting of miners prevailed.

On the other hand the commission found that in a general way, the miners in the Paint and Cabin Creek districts were fairly well off, that their wages were above the average prevailing in the organized fields, that their cabins were above the average, and that the rent, while "slightly excessive" was not exorbitant, and that the sanitation was "as good as can be expected." On the question of wages, the commission found that the annual wage of miners in West Virginia for the years 1905-1911 was \$554.26 while the average annual wage of miners on Paint and Cabin Creeks "is from \$600 to \$700." It will be noticed that in the first instance a definite, fixed figure is given for the average. In the other the statement is a general one "between \$600 and \$700."

The statement is also made that "a minute examination of the pay rolls discloses the fact that 16 or 17 days' work a month constitutes a high average and that many engaged in the mines *decline* (the italics are mine) to labor more than 12 or 14 days."

There are two sides to this. The "unwillingness" of the miners to work more than a certain number of days a month is proved to the satisfaction of the commission by an "examination of the pay roll." As a matter of fact in most instances the reason the men do not work more days in a month is due to the system of "crowding" which prevails all over the non-union districts of West Virginia. This is one of the things the miner complains about most bitterly. It is worked in this way: An operation has, say a capacity of 200 men. On the pay roll of that operation may be anywhere from 300 to 400 men. All these men cannot work in the mine at one time, but the company always wants to have plenty of men on hand. So the men are allowed to make but little more than half time. The advantage to the operators is that the more men they have the more cottages they will rent, the more mouths there will be to feed from the company stores, and the more money collected for physicians' fees, insurance and other things for which the miners have to pay. It is absolutely true that the men do not work more than from 12 to 17 days a month, but the pay roll will never tell you the real reason. The men want to work, but they are not permitted to do so.

As to the cabins being above the average—they may be. I went into some of them. I would want a more comfortable stable for my horses. The greater number of the cabins contain four rooms each and are absolutely without any sanitary or other arrangements for the convenience of the occupants. Some few are larger and some are smaller but the four room cabin is the type. They are nearly all alike, built of rough lumber and roofed with a composition roofing such as is bought by the roll. The rental is on the basis of \$1.50 per room per month. A four room cabin costs \$6 a month, a six room cabin costs \$8 or \$9. But take the average four room cabin at \$6, the yearly rate is \$72. That is interest at 6 per cent on \$1,200. The labor cost on these houses was not more than \$40 each on the average. Including the land on which the houses stand they did not cost the companies more than \$300 each. Six per cent on \$300 is \$18.

Now, the houses are put up as much for the convenience of the companies as for the miners. There would be no coal mined unless the miners had houses in which to live, so a 6 per cent rate on the houses would seem fair. But even allowing 10 per cent, the rate would be \$30 instead of \$72. At the rentals charged these houses have paid for themselves over and over again and everything the companies get out of them now is pure "velvet." I would call the rental charges exorbitant rather than "slightly excessive" as the commission finds.

As a matter of fact, that Glasscock commission report will not bear close analysis. It is a straddle, made so perhaps in order to protect "the good name of the state." I do not believe that it is accurate in a number of particulars. I do not believe that the average wage of the miners on Paint and Cabin Creeks is between \$600 and \$700. A good miner will average \$2.50 to \$3 a day for the days he works. The impression is sought to be created that many of the miners have money in bank. Some of them have, undoubtedly, but they form an exceedingly small percentage of the whole number. I know that as soon as the strike was called the vast majority of the miners and their families had to be supported by the union. I saw wagon loads of provisions sent up to the head of Cabin Creek to feed those who were hungry and who had nothing coming to them according to the books of the companies and who could get nothing at the stores.

As a matter of fact the whole truth has never been told of the real conditions existing in the mines of West Virginia. One of the most illuminating pieces of testimony available to the non-partisan investigator is that of former Governor W. M. O. Dawson. Governor Dawson sent a special message—a rare document and hard to find now—to the legislature of 1907. Three cases of peonage in lumber camps had been called to his attention by Secretary of State Elihu Root at the request of the Italian ambassador. In his message Governor Dawson declared without equivocation that a system of peonage existed under the guard system. One of these cases resulted in what he called a "wanton murder" as a result of a controversy as to whether the murdered man owed \$1.50 for the railway fare of his son. The man was killed by a guard. The governor goes on:

"The use of guards in this state is not restricted to cases like these under investigation. They are used at some of the collieries to protect the property of owners, to prevent trespassing, and especially to prevent labor agitators and organizers of the miners' union from gaining access to the miners.... Many outrages have been committed by these guards, many of whom appear to be vicious and dare devil men who seem to aim to add to their viciousness by bulldozing and terrorizing people. It is submitted in all candor that it is not to the best interests of the owners of these collieries to employ such lawless men or to justify the outrageous acts committed by them.

"In certain parts of the state miners are oppressed and wronged. They are compelled to work in ill-ventilated and otherwise unfit mines. They are cheated in the payment of the compensation for their labor. They work on the condition that they receive so much per ton for the coal mined by them, the coal is not weighed but is calculated by the mine car. These cars, at least in some of the collieries, are rated at a capacity of two and one half tons, whereas they often have a capacity of four tons and in some cases even up to six tons, but the miner is paid for only two and a half tons, for all above that he mines, he gets no pay whatever. This is robbery of the poor and oppression of the weak. At some of the stores conducted by the collieries the miners are charged extortionate prices for merchandise. This is likewise robbery of the poor and oppression of the weak."

Mother Jones

The developments of the winter have been under the regime of a third governor, who came to the state house at a season when part of the commonwealth was under martial law. In March came the trials of a number of the strikers and their sympathizers—approximately fifty—by a military court on charges of inciting to riot, conspiracy to murder and conspiracy to destroy property. Among those in prison is Mother Jones, the "Stormy Petrel of Labor" who is always present in big labor disturbances, especially those of the miners and the railroad men. She has given the best part of her life to the cause of laboring men and they adore her.

This old woman, more than 80 years of age, was in the mines when I went there and I got to know her well. She passed the word along to the men that I was "all right" and reticent as they are to strangers, they told me their side of the case without reservation.

I have been with Mother Jones when she was compelled "to walk the creek," having been forbidden to go upon the footpaths that happened to be upon the property of the companies and denied even the privilege of walking along the railroad track although hundreds of miners and others were walking on it at the time. She was compelled to keep to the county road although it was in the bed of the creek and the water was over her ankles. I protested to the chief of the guards saying that no matter what her attitude might be, no matter how much she might be hated, that she was an old woman and common humanity would dictate that she be not ill treated. I was told that she was an old "she-devil" and that she would receive no "courtesies" there, that she was responsible for all the trouble that had occurred and that she would receive no consideration from the companies.

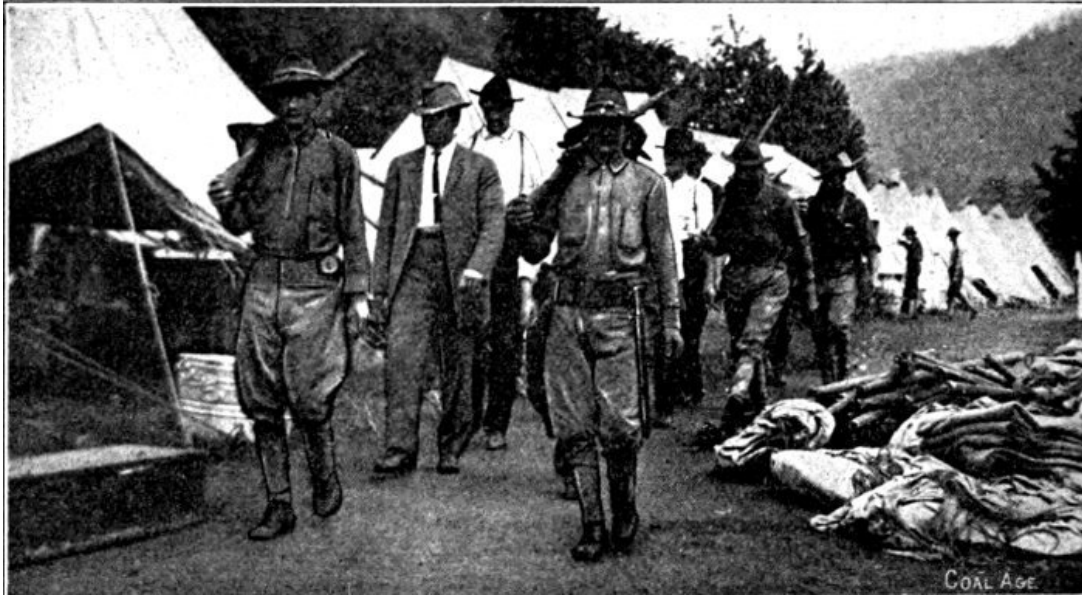
I was with her when she was denied "the privilege" of going up the foot-way to the house of one of the miners in order to get a cup of tea. It was then afternoon, she had walked several miles and was faint, having had nothing to eat since an early breakfast. But that did not shut her mouth. She made the speech she had arranged to make to the men who had gathered to hear her although they had to line up on each side of the roadway to avoid "obstructing the highway," a highway that was almost impassable to a wheeled vehicle and on which there was no travel. And in that speech she counseled moderation, told the men to keep strictly within the law and to protect the company's property instead of doing anything to injure it.

I had several long talks with her. When she speaks to the miners she talks in their own vernacular and occasionally swears. She was a normal school teacher in her early days, and in her talks with me in the home of one of her friends in the "free town" of Eskdale, she used the language of the cultured woman. And this is the old woman whom nearly all the operators in the non-union fields fear, and whose coming among their workers they dread more than the coming of a pestilence. They now have her safely in jail.

When I left the field^[11] the conflict was still on. It seemed likely to continue until one side or the other gave in. The presence of the military could only bring about a peace that is temporary. Having held out through the winter, the miners were preparing to hold out through the spring and summer and autumn if necessary, and the United Mine Workers of America were preparing to back them up with all the resources of the national organization.

[11] Since the writer left the district an unavailing effort was made to secure from the civil courts an order restraining the military commission from conducting the trials of those held on charges of participation in various deeds of violence in connection with the strike. Later, however, Governor Hatfield who, as head of the military forces of the state, has the power to review the acts of the military commission, discharged from custody a majority of those held.

Recently negotiations have been carried on between the miners' union and one of the large companies involved in the strike with the result that there is a possibility of a settlement being effected in that quarter, though the matter remains *in statu quo* until the return from the tropics of the president of the company. Recently some of the troops have been withdrawn from the strike zone, though martial law is still in force.



Courtesy of the Coal Age
MILITIAMEN ESCORTING PRISONERS TO COURT MARTIAL

SOCIAL FORCES

By EDWARD T. DEVINE

CONSTRUCTIVE RELIGION

Greed, selfishness, privilege, injustice, exploitation, ignorance, and neglect are the seven deadly sins of modern civilization. These evils are alike in this, that they all have their roots in defective or abnormally developed character. Weakness and pathological strength are their opposite but closely related and interdependent poles.

Revolution will not exterminate them, except that revolution within the soul of man which transforms weakness and moral disease into health and normal vigor; which eats away the abnormal excrescence of harmful qualities and transforms the monster into a sane and self-controlled individual.

Laws will not of themselves exterminate the least of the social evils, save as they correspond to a previous clear recognition of their wisdom and justice in the free minds of citizens. If graft and privilege express the habitual manner of doing business, the natural mental reaction of the average man of the community, then it will be true, as an investigating committee has said, that there is no virtue in the legislative printing press.

Philanthropy is no cure for the evils which cause crime, poverty, squalor, and degeneracy. It is a necessary means of dealing with certain definite conditions, but those conditions are symptoms of ulterior maladies which the charitable relation does not reach. Neither alms-giving nor preventive measures touch the real sources of regeneration and health.

Education, in the specific sense of preparation for efficient work and the development of the mental powers, such education as by mutual consent we expect from our public schools, does not begin early enough, or last long enough, or go far enough into the fields of personal habits, ideals, and motives to guard even against ignorance, at least that kind of wilful and appalling ignorance which prevents half the world from knowing how the other half lives, even when the facts are spread abroad equally in official reports and in popular literature; that kind of ignorance which blinds the eyes of the more favored of fortune and blasts the tender shoots of altruism which their hearts here and there put forth. If education cannot prevent even ignorance of this kind how much less can it be regarded as a remedy for deliberate exploitation and conscienceless greed.

If neither revolution nor laws nor yet formal education can cure these root evils, is there no cure? There is one potent, wholly efficacious cure, and that is such teaching and such an experience as will supplant selfishness and greed by generosity and compassion, the desire for privilege by the desire for equal opportunity, the instinct of injustice by the passion for justice, the tendency to exploit by the tendency to nobly serve, ignorance and neglect by a clear-eyed and persistent determination to know and understand and to act on that knowledge and understanding. This teaching, wherever it is carried on and in whatever name, is essentially religious teaching, and this experience, seizing upon the individual, is nothing else than a religious conversion. This is not to distort words from their established and usual meaning but only to apply them as they must be applied.

No rich and educated Jew can justly claim a share in the glorious traditions of his religious faith if he oppresses the poor and crushes the needy; if, lying upon beds of ivory, inventing instruments of music, drinking wine in bowls, and anointing himself with the chief ointments, he is not grieved for the afflictions of Joseph, if he afflicts the just, or takes a bribe, or turns aside the poor in the gate from their right. The afflictions of Joseph are different in these days, the form of bribery has changed, the rights of the poor from which they are turned aside are not precisely those which the prophet Amos had in mind; but the teachings remain, and the curse upon those who "rejoice in a thing of nought" may not unprofitably ring in the ears of Jews and Christians with all the old time authority and effect.

But how about the position of the prosperous and influential Christians professing a law of love, the son-ship of all men to a common Father, a gospel of good will embracing justice and implying obligations stretching in all directions infinitely beyond justice, but never denying it in the least iota? If this profession is not arrant hypocrisy or pure self-delusion, the faith which he holds will instantly expel the very evils from which we suffer, and nothing else except such faith will expel them. Religion goes to the very roots of character, cleansing the evil nature, revealing new motives, illuminating the mind, trans-valuing values, strengthening the will, lessening the power of temptations, setting the feet on safe paths, giving a new meaning to common experiences and a new zest to life.

The question remains whether this kind of constructive religion, this vital, living and vibrant faith, is to be found today in the churches and synagogues, or whether it has departed from its ancient altars, perhaps to reappear in strange disguises in the labor movement, in art or poetry or philosophy, or among humble people who do not have the means as yet of expressing the new impulses.

It is a grave question—for the churches. One interesting indication that it is to be answered in favor of the continued claim of the existing religious bodies to represent the main current of flowing religious faith, work, and thought is to be found in a new journal which appeared on the news-stands in March with the captivating title *The Constructive Quarterly*. Silas McBee, former editor of the *Churchman*, is its editor, but it is to have no "editorial pronouncements."

What is distinctive about this new periodical is that it is to work for a better understanding among the various communions of Christendom, building on what the churches are actually believing, doing, and thinking. It is not seeking neutral territory where courtesy and diplomacy would tend to avoid issues and round off the sharp edges of truth and conviction, but rather common ground where loyalty to conviction will be secure from the tendency to mere compromise and to superficial and artificial comprehension. In the first number there is a striking array of able articles from Roman Catholic, Greek Orthodox, Evangelical Protestants, from Europeans and Americans, clergymen and laymen. It will be difficult to maintain so high a standard; but the idea is an inspiring one and deserves to succeed.

The tragedy of ecclesiastical history in all ages is the spilling of blood and treasure by the churches in warfare against other forms of faith. It is true that the decay of religious controversy has usually meant a decay of interest in religion. A writer in the *Quarterly* quotes Tennyson as having said, "You must choose in religion between bigotry and flabbiness." What the present venture is in some measure to test is the possibility of laying aside hostility while yet maintaining *esprit de corps*, to act in the spirit of Von Moltke's dictum, "March apart, strike together!"

The success of the effort will depend on the clear perception of the enemies against which the allied forces of religion are to strike, or dropping the figure, on the concentration of effort on the

positive results which the forces of organized religion are to seek to secure in the social order. These lie partly at least, avoiding dogmatic exaggeration, in those social relations in which the evil tendencies to which we have referred are so apparent. The religion which is constructive is one which makes men unwilling to exploit the vices or weaknesses of their fellow men, and at the same time makes the other men unexploitable, which destroys privilege through just laws, impartially enforced, and upheld by enlightened public opinion, which dispels ignorance by full and exact knowledge bearing fruit in sound measures of social reform, which protects the sub-normal and emancipates the handicapped from their limitations, which permeates education, business, politics, and eventually the entire social life.

There may be other tests of true religion, but these are concrete, easy to understand and to apply. They have ancient and sufficient sanction. They are unsectarian and non-controversial.

STRANGE INCENSE

CARY F. JACOB

*A tiny, tangled head bent down
 Within a city's gutter—
A laughing face of tan and brown
Amid the rubbish of the town.*

*Mud-pies and broken glass all day
Bring fairyland from far away
To thee, sweet innocence, at play.*

*But mud-pies blacken; glass gives pain,
And laughing eyes are turned to gain
'Mid cold and hunger, snow and rain.*

*God shield thee, tangled head bent down
 Within a city's gutter!
Poor lily of the noisome town!
Strange incense, shed o'er stranger ground!*

Transcriber's Notes:

Simple typographical and spelling errors were corrected.

Punctuation and spelling were made consistent when a predominant preference was found in this work; otherwise they were not changed.

*** END OF THE PROJECT GUTENBERG EBOOK THE SURVEY,
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